Mortiles
4600 Lincoln Dr. Suite W-1, Baltimore, MD 21227
Primary Phone: 443-575-6680 Secondary Phone: 410-271-9723 Fax: (443) 524-8032

ORDER FORM (260333154)

CURRENT OWNER SEARCH

Ordered To			
Name :	HAZELWOOD AND ASSOCIATES LLC		
File Number:	260333154	**Date:**	03/31/2026
Order Type :	CURRENT OWNER SEARCH		
Property Information			
Borrower/Owner:	CLARENCE SCARBROUGH		
Parcel ID:			
Address :	119 6TH ST, PULASKI, VA Pulaski 24301		
State:	VIRGINIA	**County :**	PULASKI

Requirements

SEARCH MUST GO BACK TO A GOOD ARM'S LENGTH DEED. PROVIDE FULL COPIES OF ALL DEEDS. PLEASE PROVIDE COPIES OF ANY OUT SALES FROM THE ORIGINAL VESTING DEED(S).

Note: IN THE EVENT THAT THE CURRENT WARRANTY DEED HAS BEEN RECORDED WITHIN THE PAST 2 YEARS OF THE PRESENT DATE, PLEASE SEARCH ON PRIOR OWNER AS WELL. SEARCH WILL BE UPGRADED FROM CO TO 2OS
****

WE REQUIRE FULL COPIES OF ALL OPEN DEED OF TRUSTS AKA MORTGAGES. WE ALSO REQUIRE COMPLETE COPIES OF ALL ASSOCIATED DOCUMENTS SUCH AS ASSIGNMENTS, SUBORDINATIONS, MODIFICATIONS, UCCS, FINANCING STATEMENTS, POAS & REFINANCE AFFIDAVITS (IF ANY).

NOTE: IF AN ASSUMPTION MORTGAGE IS REFERENCED/MENTIONED WITHIN ANY OF THE DEEDS, WE MUST KNOW IF THE ASSUMPTION MORTGAGE IS OPEN OR RELEASED. IF OPEN/UNRELEASED PLEASE ABSTRACT AND PROVIDE A COPY OF THE MORTGAGE AS NORMAL.

IF RELEASED, PLEASE PROVIDE A COPY OF THE RELEASE/SATISFACTION. IF THE RELEASE/SATISFACTION COPY IS NOT AVAILABLE, THEN PLEASE NOTE THAT AND INSTEAD PROVIDE THE CORRESPONDING RELEASE INFORMATION SUCH AS THE REFERENCE TO THE BOOK & PAGE OR INSTRUMENT NUMBER AND RECORDING DATE OF THE RELEASE OR SATISFACTION.

PLEASE SEARCH FOR UNIFORM COMMERCIAL CODE DOCUMENTS. IF YOU LOCATE A UCC, IT IS IMPERATIVE THAT YOU VERIFY IF YOU CAN RUN A SEARCH QUERY USING THE UCC NUMBER ON THE DOCUMENT. YOU SEARCH BY UCC NUMBER (IF AVAILABLE) BECAUSE SOME RELATED DOCUMENTS (MODIFICATIONS, AMENDMENTS, RELEASES, EXTENSIONS ETC.) ARE NOT INDEXED ON THE DEBTOR'S NAME BUT THEY ARE INDEXED BY THE UCC NUMBER.
****

RUN JUDGMENTS/LIENS ON ALL NAMES AND PROVIDE READILY AVAILABLE OPEN JUDGMENTS / LIENS (NOT SATISFIED OR EXPIRED), ALSO REPORT APPLICABLE DIVORCE CASE/DOCKET ON CURRENT OWNER(S). RUN CIRCUIT COURTS WHERE JUDGMENTS AND LIENS MUST BE FILED IN ORDER TO ATTACH TO REAL ESTATE. ALWAYS PROVIDE THE DOCKETS AKA CASE HISTORY WHERE ACTUAL COPIES ARE NOT PROVIDED.

PLEASE PROVIDE COPIES OF ANY & ALL STATE AND FEDERAL TAX LIENS FOUND.

NOTE: IT IS EXTREMELY IMPORTANT THAT YOU PROVIDE A LIST OF NAMES (AND ANY VARIATIONS OF THOSE NAMES) WHO WERE RAN FOR JUDGMENTS AND LIENS.
****

IF ANY OF THE CURRENT OWNER(S) ARE DECEASED OR IF THE PROPERTY'S INTEREST OR TITLE HAS BEEN CONVEYED VIA AN ESTATE OR PERSONAL REPRESENTATIVE DEED, THEN WE REQUIRE PERTINENT PAGES FROM THE ESTATE. SUCH AS THE DOCKET aka CASE HISTORY, LAST WILL & TESTAMENT, LIST OF HEIRS, NOTICES TO CREDITORS, APPOINTMENT OF PERSONAL REPRESENTATIVE, INVENTORY, PROOF OF PAYMENT FOR ESTATE TAXES (IN APPLICABLE STATES), ANY/ALL CLAIMS AGAINST THE ESTATE & ANY OTHER PERTINENT DOCUMENTATION DIRECTLY RELATED TO THE SUBJECT PROPERTY.

IF ESTATE OCCURS FURTHER BACK IN THE CHAIN OF TITLE, THEN PROVIDE THE DOCKET INFORMATION. NO NEED TO PULL ACTUAL ESTATE COPIES ON PRIOR OWNERS, THE DOCKET INFORMATION FROM THE ESTATE WILL SUFFICE.
****

PROVIDE DETAILED PROPERTY TAXES WITH PAID AMOUNT AND THE PAID DATES. IF TAXES ARE STILL DUE, THEN WE NEED THE DUE AMOUNT WITH DUE DATES. REPORT ANY AND ALL DELINQUENCIES AND PAST DUE AMOUNTS. ALSO LIST THE PARCEL ID ON THE PROPERTY.
****

WE REQUIRE A PLAT COPY ON ALL SEARCHES. IF A PLAT IS UNAVAILABLE, PLEASE PROVIDE THE REASON WHY THE PLAT IS NOT READILY AVAILABLE AND PROVIDE WHATEVER ELSE IS AVAILABLE SUCH AS A TAX MAP OR GIS MAP.
****

ONLY REPORT C&R DOCUMENTS, ROW, EASEMENTS, ETAL... THAT ARE FOUND WITHIN THE SCOPE / TIMEFRAME OF THE SEARCH. ON YOUR ABSTRACT / WRITEUP REPORT WE WILL REQUEST THE COPIES IF REQUIRED.
****

IF THE PROPERTY IS PART OF A PUD (PLANNED URBAN DEVELOPMENT) OR HOA (HOME OWNERS ASSOCIATION) PLEASE PROVIDE THE RELEVANT PUD & HOA INFORMATION. IF THE PROPERTY IS NOT PART OF A HUD OR HOA, PLEASE BE SURE TO MAKE A NOTE THAT NONE WAS FOUND.
****

1) FOR ALL MOBILE HOME PROPERTIES, PLEASE PROVIDE AFFIDAVIT OF AFFIXTURE.

2) DO NOT PROCEED WITH THE SEARCH WITHOUT FIRST PROVIDING A DETAILED EXPLANATION & TAKING APPROVAL IF THE PROPERTY IS:
2a] NOT LOCATED IN THE COUNTY LISTED
2b] ZONED COMMERCIAL
2c] A MOBILE HOME ON LEASED LAND (MEANING THEY DO NOT OWN THE LAND).
2d) IF THE PROVIDED BORROWER IS NOT FOUND ON THE TITLE FOR THE PROVIDED PROPERTY ADDRESS.

Search By :	24-48 Business hours. Please notify us asap if TAT will exceed.

(Include Invoices with Completed Searches, Fax or Email to title@mortiles.com)

Mortiles
4600 Lincoln Dr. Suite W-1, Baltimore, MD 21227
Primary Phone: 443-575-6680 Secondary Phone: 410-271-9723 Fax: (443) 524-8032

ABSTRACTOR CHECKLIST (260333154)

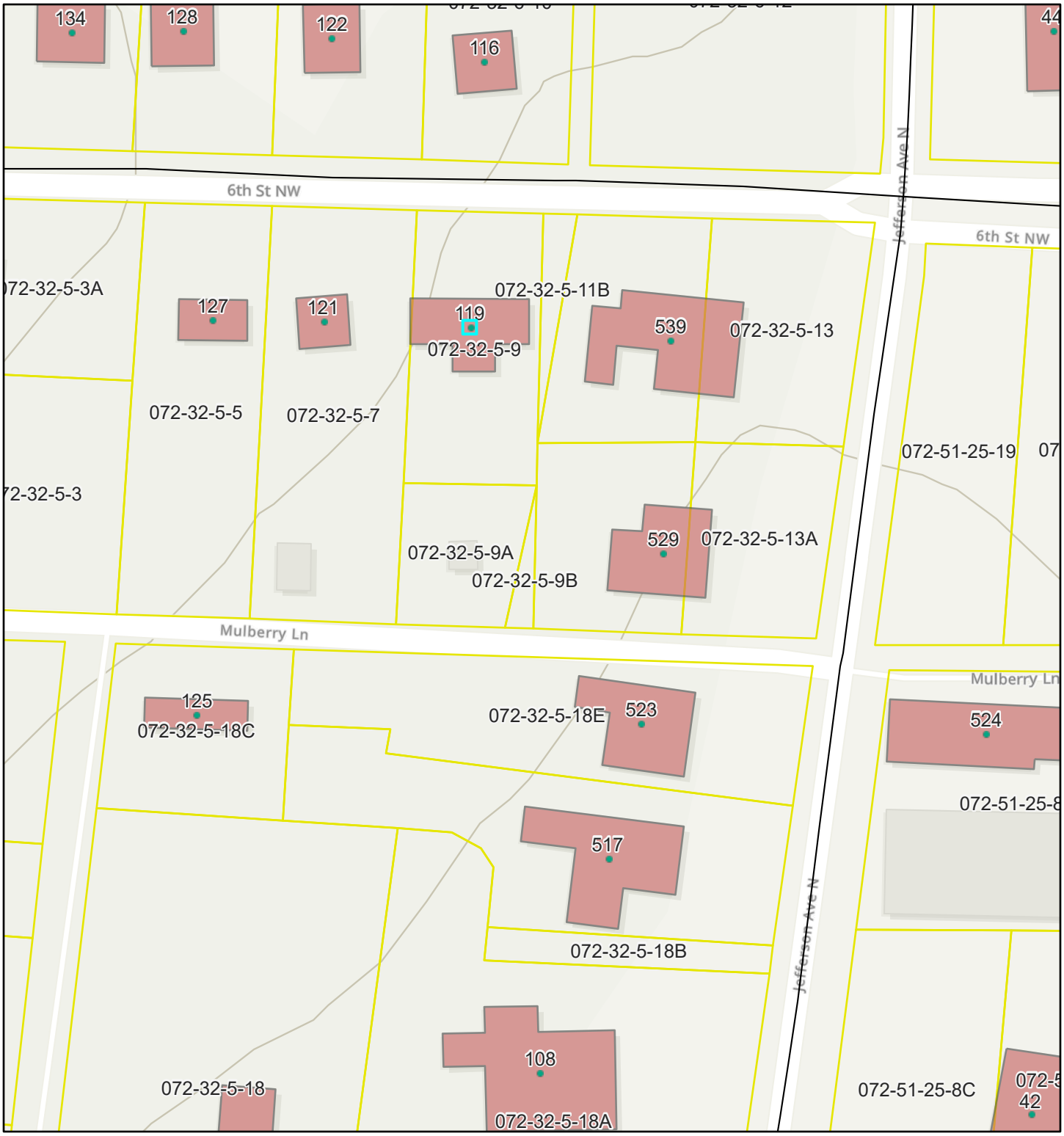
BELOW ARE REQUIRMENTS WHICH ARE OFTEN NOT MET OR NOT CLEARLY CONVEYED. PLEASE TAKE A FEW MOMENTS TO COMPLETE AND RETURN THE FORM WITH YOUR SEARCH RESULTS. KINDLY USE ADDITIONAL INFORMATION/NOTES SECTION TO CONVEY ANY RELEVANT INFORMATION. THANK YOU IN ADVACE FOR YOUR COOPERATION IN PROVIDING THIS INFORMATION.

*PLEASE BE SURE TO INCLUDE ALL PERTINENT PAGES FROM MORTGAGE AS LISTED ON THE REQUEST FORM. INCLUDING THE ADDRESS PAGE AND NOTARY SIGNATURE PAGE.

	SEARCH REQUIRMENTS	Found	None Found	Not Run
1	Is the property subject to/part of a Homeowner's Association? If yes, please provide the name of the HOA. **HOA Name:** _____ **HOA RecordingInfo: Book/Page:** _____ **Rec.Date:** _____	[ ]	[✔]	[ ]
2	Did any of the Deeds reference an Assumption Mortgage? If so, please provide the corresponding release/satisfaction information such as Book/Page, Instrument # and Recording Date. **Book/Page:** _____ **Instrument#:** _____ **Rec.Date:** _____	[ ]	[✔]	[ ]
3	We require a copy of the Plat. If you did not provide a copy of the plat, please provide an explanation as to why it was not provided. **Comments:**	[✔]	[ ]	[ ]
4	Please check the current owners for any possible Estates/Probate filed. Kindly let us know if any Estates were found by checking Found or None Found. **Estate Name:** _____ **Book/Page/EstateNo:** _____ **DOD:** _____ **Is the Estate Still Open or has it been Closed? Yes/No** **Please provide a copy of the Estate docket.**	[ ]	[✔]	[ ]
5	Please provide a list of all names ran for Judgments and Liens below.	[✔]	[ ]	[ ]
6	Are there different Effective Dates aka Good Through Dates for the various departments you searched in the County? If yes, please provide the effective date for each department. **Land Records effective date is** 3/27/2026 **Judgment & Lien index effective date is** 3/27/2026 **Please circle the respective Court: [Circuit, District, Supreme, Municipal, Prothnotary, Other] Effective Date is** _____ .	[ ]	[ ]	[ ]

NOTES/ADDITIONAL INFORMATION FROM ABSTRACTOR:

Pulaski County Parcel Map



3/31/2026, 5:36:20 PM

1:1,128

0 0.01 0.01 0.03 mi

0 0.01 0.02 0.04 km

Address Points

Parcels

Bldgs

Structures

Roads

Pulaski Town Road

Sources: Esri, TomTom, Garmin, FAO, NOAA, USGS, © OpenStreetMap contributors, CNES/Airbus DS, InterMap, NASA/METI, NASA/NGS and the GIS User Community

Web AppBuilder for ArcGIS

Esri Community Maps Contributors, VGIN, © OpenStreetMap, Microsoft, Esri, TomTom, Garmin, SafeGraph, GeoTechnologies, Inc, METI/NASA, USGS, EPA, NPS, US Census Bureau, USDA,

Tax ID R017377 0 Printed 1/12/2026 Card No. 1 of 1

SCARBROUGH CLARENCE
119 6TH ST NW
PULASKI VA 24301
PART LOTS 9 & 11 BLOCK 5 6TH ST
FULL MAP#: 072-032-0005-0009 9A,11B
DEED BK - 431, DEED PG - 350

Neighborhood Number
907

Neighborhood Name
Pulaski Center-Prospect5th-11t

TAXING DISTRICT INFORMATION

Jurisdiction Name	Pulaski County
Area	001
District	09
Parent Parcel Number	
Dept. of Tax Code	1 SF Residential Urban
Property Address	119 6TH ST NW

Site Description
Topography:
Rolling
Neighborhood:
Static
Zoning:
PUL_R2: General Residential, PUL_R2
Legal Acres:

Transfer of Ownership

Owner	Consideration	Transfer Date	Deed Book/Page	Deed Type
HANKS ELMER C	202500	09/01/2023	D 2023 D 2455	BS
HANKS ELMER C & CHRISTINE N	0	12/21/2021	W 2021 W 0263	W
VENABLE DEBORAH H	0	06/01/1987	D 0431 D 0350	

Valuation Record

Assessment Year		01/01/2014	01/01/2015	01/01/2017	01/01/2021				
Reason for Change			2015 Reasses	REQ POSTING	2021 Reval				
0	L	14000	15000	15000	17000				
	I	113100	104300	104300	118700				
	T	127100	119300	119300	135700				
								Taxable Value:	135700

Land/Use Information

Land Type	Rating, Soil ID - or - Actual Frontage	Acreage - or - Effective Frontage	Square Feet - or - Effective Depth	Influence Factor
				Total Land Value: 17000

Tax ID R017377 0 **Printed 1/12/2026**

Style: 77 Cape Cod
Occupancy: Single family

Story Height: 1.7
Finished Area: 1921
Attic: None
Basement: Full

ROOFING
Material: Comp sh to 235#
Type: Gable
Framing: Std for class
Pitch: Medium 5/12-8/12

FLOORING
Slab B
Sub and joists 1.0, 1.75
Wood B, 1.0, 1.75

EXTERIOR COVER
Masonry B
Brick 1.0, 1.75
Vinyl siding 1.0

INTERIOR FINISH
Plaster B, 1.0, 1.75

ACCOMMODATION
Finished Rooms: 5
Bedrooms: 3
Fireplaces: 1

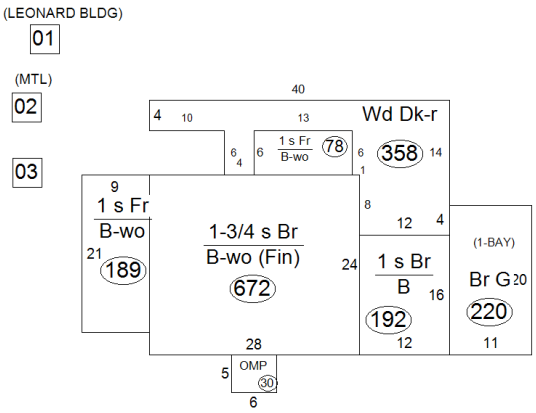
HEATING AND AIR CONDITIONING
Primary Heat: Forced hot air-gas

Lower /Bsmt	1	Full Upper	Part Upper

PLUMBING

	#	TF
3 Fixt. Baths	1	3
2 Fixt. Baths	1	2
Kit Sink	1	1
Water Heat	1	1
TOTAL		7

REMODELING AND MODERIZATION
Amount Date



Special Features

Description		
D	:	Fireplace

Summary of Improvements

ID	USE	Story Height	Const Type	Grade	Year Cons	Eff Year	Cond	Size or Area
D	DWELL	0.00		C+5	1954	1970	AV	2934
G01	ATTGAR	0.00	7				AV	220
01	UTLSHED	0.00	1	C	2014	2014	AV	0
02	CARSHEDO	0.00	5	C	2014	2014	AV	0
03	PAV	0.00		C	2014	2014	AV	0
Total Improvement Value								118700

Pulaski County Treasurer
Melinda L. Worrell, Treasurer
52 W. Main St.
Pulaski, VA 24301-5040

RETURN SERVICE REQUESTED

INTERNET TAX BILL

2025 FIRST HALF

ACCOUNT NUMBER	TICKET NUMBER
000017377	0017018

DUE DATE	PAY THIS AMOUNT
6/5/25	$0.00

INSTRUCTIONS

Real Estate Tax

1. **The County Treasurer has no authority to make any assessments or adjustments. If you feel there is an error in the assessments, please address your inquiry to the Commissioner of the Revenue.**
2. **10% Penalty will be added after 6/5/25. 10% interest per annum will be added after 6/5/25.**
3. **If a reciept is required, please send a stamped self addressed envelope.**

SCARBROUGH CLARENCE
119 6TH ST NW

PULASKI VA 24301

LAND VALUE	IMPROVMENT OR BUILDING VALUE	TOTAL VALUE	TAX RELIEF FOR ELDERLY	TAX DUE BY 6/5/2025
$17,000	$118,700	$135,700	$0	$502.09

Deed	2023	072-032-0005-0009,9A,11B	Acres	0
Page	2455	PART LOTS 9 & 11 BLOCK 5		
Will				
Page	0000			

- See the back of this notice for additional information.

Tax Rate 0.74

Tax District 09

NOTE: IF CHECK IS NOT HONORED BY BANK, THERE WILL BE A $25 RETURN CHECK FEE AND THIS RECIEPT WILL BE VOID.

PAYMENTS INFORMATION

- **PAY BY MAIL**
- **PAY ONLINE OR BY PHONE**
- **PAY IN PERSON**
- **DROP BOX**

- **CHECKS OR MONEY ORDERS: Please make payable to Pulaski County Treasurer and mail to 52 West Main Street, Suite 100, Pulaski VA 24301.**
- **PAY MULTIPLE TAX TICKETS, SEARCH, AND VIEW Online at www.pulaskicountytax.com. A convenience fee will be imposed by the card service provider.**
- **Also pay online at www.pulaskicounty.org. Click Departments, Treasurer's office, pay taxes online, and then click the logo at the top of the page. A convenience fee will be imposed by the card service provider.**
- **CREDIT/DEBIT CARDS IN OFFICE: Visa and Mastercard are accepted in the Treasurer's Office at no additional charge.**
- **PAY BY TELEPHONE: Voice recognition or automation, call 1-888-520-8724.**
- **There is a drop box located at the back of the old stone courthouse to the right side of the double doors.**

INTERNET TAX BILL

2025 TAX RECEIPT

COUNTY OF PULASKI
MELINDA L. WORRELL, TREASURER
52 W. MAIN ST. SUITE 100

PULASKI VA 24301

Ticket # : 00170180001
Date : 6/5/2025 12:00:00 AM
Acct. # : 000017377

INTERNET TAX RECEIPT

Real Estate 2025

PART LOTS 9 & 11 BLOCK 5 Acres: 0

Land: 17000 Imp: 118700

SCARBROUGH CLARENCE
119 6TH ST NW

PULASKI VA 24301

Previous Principal Balance $	502.09
Principal Being Paid $	502.09
Penalty $	0
Interest $	0
Amount Paid $	502.09
*Balance Due $	0

BALANCE DUE INCLUDES PENALTY/INTEREST THRU THE MONTH 8/2025

INTERNET TAX RECEIPT

Pulaski County Treasurer
Melinda L. Worrell, Treasurer
52 W. Main St.
Pulaski, VA 24301-5040

RETURN SERVICE REQUESTED

INTERNET TAX BILL

2025 SECOND HALF

ACCOUNT NUMBER	TICKET NUMBER
000017377	**0017018**

DUE DATE	PAY THIS AMOUNT
12/5/25	**$0.00**

INSTRUCTIONS

Real Estate Tax

1. **The County Treasurer has no authority to make any assessments or adjustments. If you feel there is an error in the assessments, please address your inquiry to the Commissioner of the Revenue.**
2. **10% Penalty will be added after 12/5/25. 10% interest per annum will be added after 12/5/25.**
3. **If a reciept is required, please send a stamped self addressed envelope.**

SCARBROUGH CLARENCE
119 6TH ST NW

PULASKI VA 24301

LAND VALUE	IMPROVMENT OR BUILDING VALUE	TOTAL VALUE	TAX RELIEF FOR ELDERLY	**TAX DUE BY 12/5/2025**
$17,000	$118,700	$135,700	$0	$502.09

Deed	2023	072-032-0005-0009,9A,11B	Acres	0
Page	2455	PART LOTS 9 & 11 BLOCK 5		
Will				
Page	0000			

- See the back of this notice for additional information.

Tax Rate 0.74

Tax District 09

NOTE: IF CHECK IS NOT HONORED BY BANK, THERE WILL BE A $25 RETURN CHECK FEE AND THIS RECIEPT WILL BE VOID.

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- **PAY BY TELEPHONE: Voice recognition or automation, call 1-888-520-8724.**
- **There is a drop box located at the back of the old stone courthouse to the right side of the double doors.**

INTERNET TAX BILL

2025 TAX RECEIPT

COUNTY OF PULASKI
MELINDA L. WORRELL, TREASURER
52 W. MAIN ST. SUITE 100

PULASKI VA 24301

Ticket # : 00170180002
Date : 12/2/2025 12:00:00 AM
Acct. # : 000017377

INTERNET TAX RECEIPT

Real Estate 2025

PART LOTS 9 & 11 BLOCK 5 Acres: 0

Land: 17000 Imp: 118700

SCARBROUGH CLARENCE
119 6TH ST NW

PULASKI VA 24301

Previous Principal Balance $	502.09
Principal Being Paid $	502.09
Penalty $	0
Interest $	0
Amount Paid $	502.09
*Balance Due $	0

BALANCE DUE INCLUDES PENALTY/INTEREST THRU THE MONTH 8/2025

INTERNET TAX RECEIPT

VIRGINIA LAND RECORD COVER SHEET

Commonwealth of Virginia VA. CODE §§ 17.1-223, -227.1, -249

FORM A – COVER SHEET CONTENT

Instrument Date: 8/29/2023

Instrument Type: DBS

Number of Parcels: 1 Number of Pages: 2

[ ] City [X] County PULASKI COUNTY COURT
CIRCUIT COURT

Tax Exempt? VIRGINIA/FEDERAL CODE SECTION

[ ] Grantor:

[ ] Grantee:

INSTRUMENT 202302455
RECORDED IN THE CLERK'S OFFICE OF
PULASKI COUNTY CIRCUIT COURT ON
SEPTEMBER 1, 2023 AT 01:20 PM
$202.50 GRANTOR TAX WAS PAID AS
REQUIRED BY SEC 58.1-802 OF THE VA. CODE
STATE: $101.25 LOCAL: $101.25
MAETTA H CREWE, CLERK
RECORDED BY: RXS

(Area Above Reserved For Deed Stamp Only)

Business/Name

1 Grantor: HANKS, ELMER C

2 Grantor: HANKS, JAMES ERIC

1 Grantee: SCARBROUGH, CLARENCE

Grantee:

Grantee Address

Name: CLARENCE SCARBROUGH

Address: 119 6TH ST NW

City: PULASKI State: VA Zip Code: 24301

Consideration: $202,500.00 Existing Debt: $0.00 Actual Value/Assumed: $135,700.00

PRIOR INSTRUMENT UNDER § 58.1-803(D):

Original Principal: $0.00 Fair Market Value Increase: $0.00

Original Book No.: Original Page No.: Original Instrument No.:

Prior Recording At: [ ] City [ ] County Percentage In This Jurisdiction: 100%

Book Number: Page Number: Instrument Number:

Parcel Identification Number/Tax Map Number: 072-032-0005-0009

Short Property Description: PART LOTS 9 & 11 BLOCK 5 6TH ST FULL
MAP#: 072-032-0005-0009 9A,11B

Current Property Address: 119 6TH STREET NW

City: PULASKI State: VA Zip Code: 24301

Instrument Prepared By: SPENCER & TAYLOR, PLC Recording Paid By: PERFORMANCE TITLE & SETTLEMENT

Recording Returned To: PERFORMANCE TITLE & SETTLEMENT

Address: 4405 STARKEY RD STE B

City: ROANOKE State: VA Zip Code: 24018

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Return Recorded Document to:
PERFORMANCE TITLE & SETTLEMENT, INC.
4405 Starkey Road, Suite B
Roanoke, VA 24018

Prepared by: SPENCER & TAYLOR, PLC
401 Lime Kiln Road
Lexington, Virginia 24450
VSB# 48828

Title underwritten by Fidelity National Title Insurance Company
Consideration: $202,500.00
Assessed Value: $135,700.00

Tax Map # 072-032-0005-0009

THIS DEED, made and entered into this 21st day of August, 2023, by and between **ELMER C. HANKS** (also known as Elmer Calfee Hanks) who executed this instrument by and through his attorney-in-fact, **JAMES ERIC HANKS, Grantor**; and **CLARENCE SCARBROUGH, Grantee**, whose address is 119 6th Street NW, Pulaski, Virginia 24301:

:-: W I T N E S S E T H :-:

FOR AND IN CONSIDERATION of the sum of TEN and NO/100 ($10.00) DOLLARS, cash in hand paid, and other good and valuable consideration, the receipt of which is hereby acknowledged, the said Grantor does hereby **BARGAIN, SELL, GRANT** and **CONVEY** with **GENERAL WARRANTY** and **MODERN ENGLISH COVENANTS OF TITLE** unto the Grantee, all that certain lot or parcel of land, together with any improvements thereon and appurtenances thereunto belonging, lying and being in the County of Pulaski, Virginia, and more particularly bounded and described as follows:

BEGINNING at an iron pipe stake in the south line of Sixth Street, Northwest, said stake being located 137 feet westward from the intersection of the south line of Sixth Street, Northwest, with the west line of Jefferson Avenue, and being the northwest corner of the Oscar Laughon property; thence from said beginning point running with the south line of Sixth Street, Northwest, North 88 degrees 00' West 84.75 feet to an iron pipe at the northeast corner of Lot No. 7 (the Adair lot); thence with a line of said lot, South 2 degrees 00' West 150.0 feet to an iron pipe stake; thence South 88 degrees 00' East 68.2 feet to an iron pipe stake in the extension of the west line of said Laughon property; thence with said line, North 8 degrees 18' East 150.9 feet to the BEGINNING, and being the major part of the northern 150 feet of Lot No. 9 and 9.75 feet of the northwest corner of Lot No. 11, in Section 5, as shown on the Official Map of the Town of Pulaski, Virginia.

Also being the same property per "Physical Survey of portions of Lots Nos. 9 and 11, Section 5, as shown on a map of the Town of Pulaski, Pulaski County, Virginia, for Joseph E. And Deborah H. Venable," dated the 13th day of February, 1978, and prepared by R. Lloyd Mathews, Registered Professional Surveyor.

BEING the same real estate acquired by Elmer C. Hanks and Christine Nester Hanks from Deborah Hanks Moody and James Calvin Moody by Deed dated May 27, 1987, of record in the Clerk's Office of the Circuit Court of Pulaski County, Virginia, in Deed Book 431, page 350. Christine Nester Hanks departed life October 7, 2019, as evidenced by Case File No. 202100263 recorded in the aforesaid Clerk's Office, and fee simple title to the herein conveyed real estate vested in Elmer C. Hanks by virtue of survivorship provision contained in the above referenced deed.

This conveyance is made subject to restrictive covenants and utility rights of way and easements of record which do not materially and adversely affect the use of the property for the presently intended purpose or render the title unmarketable.

Elmer Calfee Hanks (also known as Elmer C. Hanks) executes this Deed by and through his attorney-in-fact, James Eric Hanks, by virtue of that certain General Durable Power of Attorney dated December 10, 2022, of record in the aforesaid Clerk's Office immediately preceding the recordation of this deed.

James Eric Hanks, attorney-in-fact for Elmer Calfee Hanks, by his execution hereof, hereby avers that the above referenced General Durable Power of Attorney is in full force and effect, and that he has no knowledge, and has not received actual knowledge or actual notice of the revocation or termination of the power of attorney by death, disability or otherwise, or notice of any facts indicating the same, and that the principal is alive as of the date of closing.

WITNESS the following signatures and seals:

Elmer C. Hanks also known as Elmer Calfee Hanks (SEAL)
Elmer C. Hanks (also known as Elmer Calfee Hanks)

By: _____ (SEAL)
James Eric Hanks

STATE OF Virginia, AT LARGE
CITY/COUNTY OF Pulaski, To-wit:

The foregoing instrument was acknowledged before me this 29th day of Aug, 2023, by James Eric Hanks, at attorney-in-fact on behalf of Elmer Calfee Hanks.

My commission expires: Feb. 29, 2024
Notary registration number: 7166674

Notary Public

NOTARIAL SEAL:

ATTILAH NIESHIA MITCHELL
Notary Public
Commonwealth of Virginia
Registration No. 7166674
My Commission Expires Feb 29, 2024

VIRGINIA LAND RECORD COVER SHEET

Commonwealth of Virginia VA. CODE §§ 17.1-223, -227.1, -249

FORM A – COVER SHEET CONTENT

Instrument Date: 12/10/2022

Instrument Type: PA

Number of Parcels: 1 Number of Pages: 8

[ ] City [X] County PULASKI COUNTY COURT
CIRCUIT COURT

Tax Exempt? VIRGINIA/FEDERAL CODE SECTION

[ ] Grantor:

[ ] Grantee:

INSTRUMENT 202302453
RECORDED IN THE CLERK'S OFFICE OF
PULASKI COUNTY CIRCUIT COURT ON
SEPTEMBER 1, 2023 AT 01:19 PM
MAETTA H CREWE, CLERK
RECORDED BY: RXS

(Area Above Reserved For Deed Stamp Only)

Business/Name

1 Grantor: HANKS, ELMER CALFEE

Grantor:

1 Grantee: MOODY, DEBORAH HANKS

2 Grantee: HANKS, JAMES ERIC

Grantee Address

Name: DEBORAH HANKS MOODY

Address:

City: State: VA Zip Code:

Consideration: $0.00 Existing Debt: $0.00 Actual Value/Assumed: $0.00

PRIOR INSTRUMENT UNDER § 58.1-803(D):

Original Principal: $0.00 Fair Market Value Increase: $0.00

Original Book No.: Original Page No.: Original Instrument No.:

Prior Recording At: [ ] City [ ] County Percentage In This Jurisdiction: 100%

Book Number: Page Number: Instrument Number:

Parcel Identification Number/Tax Map Number: 072-032-0005-0009

Short Property Description: PART LOTS 9 & 11 BLOCK 5 6TH ST FULL
MAP#: 072-032-0005-0009 9A,11B

Current Property Address: 119 6TH STREET NW

City: PULASKI State: VA Zip Code: 24301

Instrument Prepared By: N/A Recording Paid By: PERFORMANCE TITLE & SETTLEMENT

Recording Returned To: PERFORMANCE TITLE & SETTLEMENT

Address: 4405 STARKEY RD STE B

City: ROANOKE State: VA Zip Code: 24018

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2023001629
POWER OF ATTORNEY
RECORDING FEES $25.00
PRESENTED & RECORDED:
03-03-2023 11:57 AM
K MICHELLE SIMMONS
CLERK OF COURT
LAURENS COUNTY, SC
BY: CLERK 4 CLERK
BK: D 1718
PG: 65 - 72

STATE OF VIRGINIA)
)
COUNTY OF PULASKI)

GENERAL DURABLE POWER OF ATTORNEY

KNOW ALL MEN BY THESE PRESENTS, that, as principal, I, ***Elmer Calfee Hanks,*** a resident of the state and county aforesaid, have made, constituted, and appointed and by these presents do make, constitute, and appoint ***Deborah Hanks Moody*** or ***James Eric Hanks*** my true and lawful primary agent for purposes hereinafter set forth.

ARTICLE I

Agent is authorized in Agent's absolute discretion from time to time and at any time with respect to my property, real or personal, at any time owned or held by me and without authorization of any court, and in addition to any other rights, powers or authority granted by any other provision of this power of attorney or by statute or general rules of law (and regardless of whether I am mentally incompetent or physically or mentally incapacitated or incapable of managing my property and income), with full power of substitution as follows:

1. To exercise or perform any act, power, duty, right, or obligation whatsoever that I now have, or may hereafter acquire the legal right, power, or capacity to exercise or perform, in connection with, arising from, or relating to any person, item, transaction, thing, business property, real or personal, tangible or intangible, or matter whatsoever;

2. To request, ask, demand, sue for, recover, collect, receive and hold and possess all such sums of money, debts, dues, legacies, bequests, devises, notes, interests, stock certificates, bonds, dividends, certificates of deposit, annuities, pension and retirement benefits, insurance benefits and proceeds, any and all documents of title, chooses in action, personal and real property, intangible and tangible property, and property rights, and demands whatsoever, liquidated or unliquidated, as now are, or shall hereafter become, owned by, or due, owing, payable or belonging to, me or in which I have or may have hereafter acquire interest, to have, use, and take all lawful means and

equitable and legal remedies, procedures, and writs in my name for the collection and recovery thereof, and to adjust, sell, compromise, and agree for the same, and to make execute, and deliver for me, on my behalf, and in my name, all endorsements, acquittances, releases, receipts, or other sufficient discharges for the same;

3. To lease, purchase, exchange, and acquire, and to agree, bargain, and contract for the lease, purchase, exchange, and acquisition of, and to accept, take, receive, and possess any real or personal property whatsoever, tangible or intangible, or interest therein, and including, but not limited to, all types of stocks and bonds and other similar kinds of securities; to execute, seal and deliver any transfers, writings and instruments to effect such transaction or transactions; and to receive in payment the proceeds of such transaction or transactions without any duty or obligation on the payor to investigate the disposition thereof, and to issue receipts therefor, on such terms and conditions, and under such covenants, as said agent shall deem proper;

4. To maintain, repair, improve, manage, insure, rent, lease, sell, convey, subject to liens, mortgage, subject to deeds of trust, and hypothecate, and in any way or manner deal with all or any part of any real or personal property whatsoever, tangible or intangible, or any interest therein, that I now own or may hereafter acquire, for me, in my behalf, and in my name and under such terms and conditions, and under such covenants, as said agent shall deem proper;

5. To open, maintain and close checking and savings accounts in my name in any banks, savings and loan associations, building and loan associations, credit unions, or similar institutions; to receive, endorse and deposit negotiable instruments made or drawn to my order to issue, receive, or endorse with my name checks, drafts and orders for the payment of money from, or to any account of mine in any such institution, including those payable to said

agent; to agree to and sign in my name and authority, signature cards or other documents that my agent or any institution may deem appropriate;

6. To conduct, engage in, and transact any and all lawful business of whatever nature or kind for me, on my behalf, and in my name;

7. To borrow money and to encumber, mortgage or pledge any asset of mine for any term, in connection with the exercise of this power of attorney;

8. To make, receive, sign, indorse, execute, acknowledge, deliver, and possess such applications, contracts, agreements, options, covenants, conveyances, deeds, trust deeds, security agreements, bills of sale, leases, mortgages, assignments, insurance policies, bills of lading, warehouse, warehouse receipts, documents of title, bills, bonds, debentures, checks, drafts, bills of exchange, letters of credit, notes, stock certificates, proxies, warrants, commercial paper, receipts, withdrawal receipts and deposit instruments relating to accounts for deposits in, or certificates of deposit of, banks, savings and loan or other institutions or associations, proofs of loss, evidences of debts, releases, and satisfaction of mortgages, liens, judgments, security agreements and other debts and obligations and such other instruments in writing of whatever kind and nature as may be necessary or proper in the exercise of the rights and powers herein granted;

9. To lease, maintain and close out safe deposit boxes in any banking or other institution and to enter any safe deposit box or place of safekeeping of property now or hereafter maintained in my name or on my behalf without anyone else being present, and to agree to and sign in my name any authority, signature cards or other documents for such purposes;

10. To appear for me, and in my behalf before any person having authority by the laws of any State or of the United States;

11. To appear and vote, and otherwise act as my proxy or representative in respect to such number of shares of any company, corporation,

trust or other such organization as I may be entitled to vote, at any and all meetings of any such organizations, and to sign and execute any proxies or other instruments for others to vote such shares;

12. To make and sign in my name any and all tax or other returns to the State or Federal Government or other taxing authority, to request extensions in connection with such taxes, to protest in my name any such taxes or the proposed assessment of any such taxes, to file claims for refunds of taxes, to make appearances in court or before any taxing authority, either in person or through an agent, to attempt to sustain any tax return or to oppose proposed tax assessments

13. To pay the cost of maintenance of my home and all incidental charges or household expenses, including, but not limited to, domestic servants;

14. To effectuate my resignation from any position of trust or responsibility (whether or not such duties thereunder are personal to me) or from any organization membership;

15. To enter into, make, and execute any bond whatsoever, either as principal or surety, and to *sign,* seal, acknowledge and deliver the same for me and in my name, either as principal or surety;

16. To enter any personal appearance for me as a plaintiff or as a defendant in any legal action, suit, court, or hearing or to accept, waive or acknowledge any process or service of process from any court, board or agency whatsoever directed to me personally; and to compromise, refer to arbitration, or submit to judgment in any such action or proceeding;

17. To provide for my proper care during any illness, and to consent or withhold consent on my behalf to any medical procedure or treatment, to pay all medical, hospital, nursing and other charges incident to any of same;

18. To employ and compensate attorneys-at-law, accountants, real estate agents, and other such agents and advisors with relation to any matters mentioned herein;

19. To take any action for the care, preservation, insurance, management or superintendence of my property; and

20. To disclaim, in whole or in part, any property, interest in property, or powers to which I am or may become entitled, whether by gift, testate or intestate succession, right of survivorship, or inter vivos or testamentary transfer, and to release or abandon any property, interest in property or powers, in whole or in part, which I may now or hereafter own, including any interest in or rights over trusts (including the right to alter, amend, revoke or terminate) and to exercise any right to claim or disclaim an elective share in any estate or under any will.

21. To make gifts of any of my assets to any individuals (and/or to any charities), provided that I have previously made gifts to such donee, or such donee is a beneficiary under my most recently executed Will (as determined by my agent), or such donee is otherwise a natural object of my bounty, and provided further that gifts to my agent may only be made if substantially identical gifts are simultaneously made to others similarly situated; and to consent to transfers being treated as "split gifts" as allowed bylaw;

22. To transfer any or all of my assets to a corporate trustee to hold same in trust upon such terms and conditions as my agent may deem appropriate provided such trust (i) is solely for my benefit, (ii) may be amended or revoked by me or my agent, and (iii) provides that at my death all assets then held in such trust shall be delivered to the personal representative of my estate;

23. To apply and seek for all governmental assistance, including the establishment of a trust to accomplish the same.

ARTICLE II

In connection with the exercise of the powers herein described, Agent is fully authorized and empowered to perform any other acts or things necessary, appropriate, or incidental thereto, with the same validity and effect as if I were personally present, competent, and personally exercised the powers myself. All acts lawfully done by Agent hereunder during any period of my incapacity or mental incompetence shall have the same effect and inure to the benefit of and bind me and my heirs, devisees, legatees and personal representatives as if I were mentally competent and not incapacitated. The powers herein conferred may be exercised by Agent alone and the signature or act of Agent on his behalf may be accepted by third persons as fully authorized by me and with the same force and effect as if done under my hand and seal and as if I were present in person, acting on my own behalf and competent. No person who may act in reliance upon the representations of Agent for the scope of authority granted to Agent shall incur any liability to me or to my estate as a result of permitting Agent to exercise any power, nor shall any person dealing with Agent be responsible to determine or insure the proper application of funds or property.

ARTICLE III

This power of attorney shall not be affected by physical incapacity or mental incompetence of the principal which renders the principal incapable of managing his own estate. It is my intent that the authority conferred herein shall be exercisable notwithstanding my physical incapacity or mental incompetence.

ARTICLE IV

This Power of Attorney shall remain in full force and effect until the earlier of the following events:

(i) Agent has resigned as provided herein;

(ii) I have revoked this power of attorney by written instrument recorded in the public records of the county aforesaid;

(iii) A conservator shall have been appointed for me by a court of competent jurisdiction; or

(iv) Termination by other court order.

ARTICLE V

This power of attorney may be amended by me at any time and from time to time but such amendment shall not be effective as to third persons dealing with Agent without notice of such amendment unless such amendment shall have been recorded in the public records of the county aforesaid.

ARTICLE VI

In the event that Agent shall become unable or unwilling to serve or continue to serve, then Agent may resign by delivering to me in writing a copy of his resignation and recording the original in the public records of the county aforesaid. Upon such resignation and recording, Agent shall thereupon be divested of all authority under this power of attorney.

ARTICLE VII

Any person named herein as Agent may be removed by written instrument executed by me and recorded in the public records of the county aforesaid.

IN WITNESS WHEREOF, as Principal, I have executed this power of attorney as of this 10th day of December, 2022.

Elmer C. Hanks

Elmer Calfee Hanks

STATE OF SOUTH CAROLINA)
) ATTESTATION
COUNTY OF LAURENS)

The foregoing Power of Attorney was this 10th day of December, 2022, signed, sealed, published, and declared by the Principal as the Principal's appointment and empowerment of an agent, in the presence of us who, at the Principal's request and in the Principal's presence and in the presence of each other, have hereunto subscribed our names as witnesses hereto.

_____ of Clinton, SC

Peggy G Goodman of Whitmire, SC

STATE OF SOUTH CAROLINA)
) PROBATE
COUNTY OF LAURENS)

Personally appeared before me the undersigned witness who made oath that (s)he saw the within named, ***Elmer Calfee Hanks,*** sign, seal and as his Act and Deed deliver the within written General Durable Power of Attorney; that (s)he with the other witness whose signature appears above witnessed the execution thereof; and that (s)he is not a party to or beneficiary of the transaction.

_____

Sworn to before me this 10th
day of December, 2022.

Peggy G Goodman (SEAL)
Name: Peggy G. Goodman
Notary Public for South Carolina
My commission expires: 07/16/2029

NOTARY PUBLIC
SOUTH CAROLINA
PEGGY G. GOODMAN
COMMISSION EXPIRES

VIRGINIA LAND RECORD COVER SHEET

Commonwealth of Virginia VA. CODE §§ 17.1-223, -227.1, -249

FORM A – COVER SHEET CONTENT

Instrument Date: 8/29/2023

Instrument Type: AF

Number of Parcels: 1 Number of Pages: 1

[ ] City [X] County PULASKI COUNTY COURT
CIRCUIT COURT

Tax Exempt? VIRGINIA/FEDERAL CODE SECTION

[ ] Grantor:

[ ] Grantee:

INSTRUMENT 202302454
RECORDED IN THE CLERK'S OFFICE OF
PULASKI COUNTY CIRCUIT COURT ON
SEPTEMBER 1, 2023 AT 01:20 PM
MAETTA H CREWE, CLERK
RECORDED BY: RXS

(Area Above Reserved For Deed Stamp Only)

Business/Name

1 Grantor: HANKS, ELMER CALFEE

Grantor:

1 Grantee: HANKS, JAMES ERIC

Grantee:

Grantee Address

Name: JAMES ERIC HANKS

Address:

City: State: VA Zip Code:

Consideration: $0.00 Existing Debt: $0.00 Actual Value/Assumed: $0.00

PRIOR INSTRUMENT UNDER § 58.1-803(D):

Original Principal: $0.00 Fair Market Value Increase: $0.00

Original Book No.: Original Page No.: Original Instrument No.:

Prior Recording At: [ ] City [ ] County Percentage In This Jurisdiction: 100%

Book Number: Page Number: Instrument Number:

Parcel Identification Number/Tax Map Number: 072-032-0005-0009

Short Property Description: PART LOTS 9 & 11 BLOCK 5 6TH ST FULL
MAP#: 072-032-0005-0009 9A,11B

Current Property Address: 119 6TH STREET NW

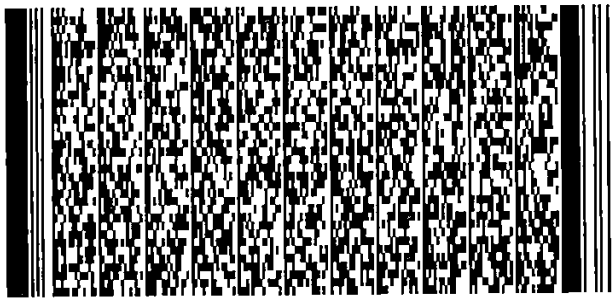
City: PULASKI State: VA Zip Code: 24301

Instrument Prepared By: PERFORMANCE TITLE & SETTLEMENT Recording Paid By: PERFORMANCE TITLE & SETTLEMENT

Recording Returned To: PERFORMANCE TITLE & SETTLEMENT

Address: 4405 STARKEY RD STE B

City: ROANOKE State: VA Zip Code: 24018



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AGENT'S CERTIFICATION AS TO THE VALIDITY OF POWER OF ATTORNEY AND AGENT'S AUTHORITY PURSUANT TO §64.2-1639 OF THE CODE OF VIRGINIA

I, **James Eric Hanks**, certify that under penalty of perjury that **Elmer Calfee Hanks** granted me authority as an agent or successor agent in a power of attorney dated December 10, 2022.

I further certify that to my knowledge:

(1) The Principal is alive and has not revoked the power of attorney and/or my authority to act under the power of attorney has not terminated;
(2) If the power of attorney was drafted to become effective upon the happening of an event or contingency, the event or contingency has occurred;
(3) If I was named as a successor agent, the prior agent is no longer able or willing to serve; and
(4) _____

(Insert other relevant statements)

Agent Signature: _____ Date: 8-29-2023

Printed Name: JAMES E. HANKS

Address: 701 CARDINAL DR. PULASKI VA. 24301

Telephone No: (540) 616-9052

State of VA,
County/City of Pulaski, to-wit:

Subscribed and sworn before me on this 29th day of Aug., 2023, by James Eric Hanks, personally known to me or proved to me on the basis of satisfactory evidence to be the person who appeared before me.

My commission expires: Feb. 29, 2024
ID # 7166674

_____
Notary Public

PREPARED BY: PERFORMANCE TITLE & SETTLEMENT, INC.

ATTILAH NIESHIA MITCHELL
Notary Public
Commonwealth of Virginia
Registration No. 7166674
My Commission Expires Feb 29, 2024

Last Will and Testament

I, ***CHRISTINE N. HANKS***, a resident of and domiciled in the County of Pulaski, State of Virginia, do hereby make, publish and declare this to be my Last Will and Testament, hereby revoking all Wills and Codicils at any time heretofore made by me.

ITEM I

I direct that all my just debts, secured and unsecured, be paid as soon as practicable after my death.

ITEM II

I give, devise, and bequeath all of my property, both real and personal, of every kind and description, wherever situate and whether acquired before or after the execution of this Will, absolutely and in fee simple to my husband, ***ELMER C. HANKS***.

In the event my husband, ***ELMER C. HANKS***, predeceases me, then in such event, I give, devise, and bequeath all of my property absolutely and in fee simple to my daughter, ***DEBORAH H. MOODY***, and my son, ***JAMES E. HANKS***, in equal shares.

ITEM III

I request and direct that my beneficiaries and devisees hereunder abide by any written memoranda regarding the distribution of personal items. If this memoranda is not found by my Personal Representative within ninety (90) days, then it shall be conclusively presumed that there is no written memoranda.

ITEM IV

I hereby nominate, constitute, and appoint as Personal Representative of this my Last Will and Testament my husband, ***ELMER C.***

HANKS, and direct that he shall serve without bond. In the event my husband, ***ELMER C. HANKS***, is unable or unwilling to serve, I nominate, constitute, and appoint my daughter, ***DEBORAH H. MOODY***, and my son, ***JAMES E. HANKS***, as Alternate Personal Representatives and direct that they shall serve without bond.

ITEM V

By way of illustration and not of limitation and in addition to any inherent, implied, or statutory powers granted to Personal Representatives generally, my Personal Representative or Alternate Personal Representative is specifically authorized and empowered with respect to any property, real or personal, at any time held under any provision of this my Will: To allot, allocate between principal and income, assign, borrow, buy, care for, collect, compromise claims, contract with respect to, continue any business of mine, convey, convert, deal with, dispose of, enter into, exchange, hold, improve, incorporate any business of mine, invest, lease, manage, mortgage, grant and exercise options with respect to, take possession of, pledge, receive, release, repair, sell, sue for, to make distribution in cash or in kind or partly in each without regard to the income tax basis of such asset, and in general, to exercise all of the powers in the management of my Estate, which any individual could exercise in the management of similar property owned in its own right, upon such terms and conditions as to my Personal Representative or Alternate Personal Representative may seem best and to do all acts which my Personal Representative or Alternate Personal Representative may deem proper or necessary to carry out the purposes of this my Will, without being limited in any way by the specific grants of power made, and without the necessity of a Court Order.

ITEM VI

If any beneficiary and I should die under such circumstances as

would render it doubtful whether the beneficiary or I died first, then it shall be conclusively presumed for the purposes of this my Will that said beneficiary survived me.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my seal this 23 day of May, 2003.

Christine N. Hanks
CHRISTINE N. HANKS

The foregoing Will consisting of three (3) typewritten pages, this included, the preceding two (2) pages thereof bearing on the margin the signature of the Testatrix, was this 23 day of May, 2003, signed, sealed, published, and declared by the said Testatrix as and for her Last Will and Testament in our presence, and we, at her request and in her presence, and in the presence of each other, have hereunto subscribed our names as witnesses on the above date.

[illegible] OF Pulaski, VA

Monica L. Mullins OF Dublin, VA

VIRGINIA: IN THE CIRCUIT COURT OF THE PULASKI COUNTY

COURT FILE NO. 202100263

IN RE: CHRISTINE N HANKS ,Deceased

PROBATE OF WILL
NO QUALIFICATION

A paper writing purporting to be the last will and testament of Christine N Hanks , deceased, was presented to the Clerk and offered for probate by James Hanks , the proponent of the will.

It appearing that the decedent resided at 119 6th Street NW Pulaski VA 24301 , in Pulaski County, Virginia, within the jurisdiction of this Court, and died on October 7, 2019; and the paper writing dated May 23, 2003, consisting of three (3) typewritten pages, having been executed and witnessed as provided by Sec. 64.2-452 or 64.2-453, Code of Virginia, it is ESTABLISHED and ADJUDGED to be the true last will and testament of Christine N Hanks , deceased, and it is ORDERED to be recorded as such.

Elmer Hanks, the named Executor in the last will and testament of Christine N Hanks , deceased, declines to qualify as such, or is now also deceased.

The written notice of probate referred to in Section 64.2-508, Code of Virginia, is not required in this estate pursuant to Sec. 64.2-508 (B).

Ruth Gast ,Deputy Clerk
December 21, 2021

LIST OF HEIRS
COMMONWEALTH OF VIRGINIA VA. CODE § 64.2-509

Case File No.:**202100263**

Pulaski County Circuit Court

Christine N Hanks
NAME OF DECEDENT

October 7, 2019
DATE OF DEATH

I/We, the undersigned, hereby state under oath that the following are all of the heirs of the Decedent:

NAMES OF HEIRS	ADDRESSES	RELATIONSHIP	AGE
Elmer Hanks	**119 6th Street Pulaski,VA 24301**	**Husband**	**Adult**

[ ] This LIST OF HEIRS is filed in addition to the LIST OF HEIRS previously filed with this Court on .....
DATE

I/we am/are (please check one):

[X] Proponent(s) of the will (no qualification)

[ ] Personal representative(s) of the decedent's estate

[ ] Heir-at-law of intestate decedent (no qualification within 30 days following death)

Given under my/our hand this **twenty first** day of **December, 2021**
DATE

James Hanks
PRINTED NAME OF SUBSCRIBER

SIGNATURE OF SUBSCRIBER

PRINTED NAME OF SUBSCRIBER

SIGNATURE OF SUBSCRIBER

PRINTED NAME OF SUBSCRIBER

SIGNATURE OF SUBSCRIBER

State of Virginia City/County of **Pulaski County**, to-wit:

Subscribed and sworn to before me this **twenty first** day of **December, 2021** by **James Hanks**

[ ] CLERK [X] DEPUTY CLERK [ ] NOTARY PUBLIC

My commission expires .....

Registration No. .....

VIRGINIA: In the Clerk's Office of the **Pulaski County** Circuit Court this **twenty first** day of **December, 2021** the foregoing LIST OF HEIRS was filed and admitted to record.

Teste: Maetta H. Crewe
CLERK

by: _____, Deputy Clerk

FORM CC-1611 MASTER 10/12

VIRGINIA LAND RECORD COVER SHEET
FORM A – COVER SHEET CONTENT

INSTRUMENT 202502179
RECORDED IN THE CLERK'S OFFICE OF
PULASKI COUNTY CIRCUIT COURT ON
AUGUST 1, 2025 AT 03:33 PM
SPENCER A. RYGAS, CLERK
RECORDED BY: RXS

(Area Above Reserved For Deed Stamp Only)

Instrument Date: **06/30/2025**
Instrument Type: **RFDT**
Number of Parcels: **1** Number of Pages: **18**
[ ] City [X] County
PULASKI

TAX EXEMPT? VIRGINA/FEDERAL LAW
[ ] Grantor:
[ ] Grantee:
Consideration: **$210,333.00**
Existing Debt: **$0.00**
Actual Value/Assumed: **$0.00**
PRIOR INSTRUMENT UNDER § 58.1-803(D)
Original Principal: **$0.00**
Fair Market Value Increase: **$0.00**
Original Book Number: Original Page Number: Original Instrument Number:

Prior Recording At: [ ] City [X] County
PULASKI Percentage In This Jurisdiction: **100%**

BUSINESS / NAME
1 [ ] Grantor: **CLARENCE SCARBROUGH**
[ ] Grantor:
1 [X] grantee: **VILLAGE CAPITAL & INVESTMENT LLC**
2 [ ] grantee: **TRACY BRYAN HORSTKAMP ESQUIRE**

GRANTEE ADDRESS:
Name: **Village capital & investment llc**
Address: **2460 PASEO VERDE PARKWAY**
City: **HENDERSON** State: **NV** Zip Code: **89074**
Book Number: Page Number: Instrument Number:
Parcel Identification Number (PIN): Tax Map Number: **072-032-0005-0009**
Short Property Description: **PART LOTS 9 & 11 BLOCK 5 6TH ST**

Current Property Address:
City: **Pulaski** State: **VA** Zip Code: **24301**
Instrument Prepared By: **MARK TIMPSON** Recording Paid By: **MILESTONE SETTLEMENT, LLC**
Recording Returned To: **VILLAGE CAPITAL & INVESTMENT, LLC**
Address: **2460 Paseo Verde Parkway**
City: **Henderson** State: **NV** Zip Code: **89074**

§§ 17.1-223,17.1-227.1,17.1-249
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When recorded, return to:
Village Capital & Investment LLC
Attn: Final Docs
2460 Paseo Verde Parkway
Suite 110
Henderson, NV 89074

This document was prepared by:
Mark Timpson
Village Capital & Investment, LLC
2460 Paseo Verde Parkway, Suite 110
Henderson, NV 89074
888-330-6597

APN #: 072-032-0005-0009

Title Order No.: 22-111023-VA
Escrow No.: 22-111023-VA
LOAN #: 72425060259

AMOUNT OF CONSIDERATION: $210,333.00

[Space Above This Line For Recording Data]

CASE #: 14-14-6-1638004

DEED OF TRUST

MIN 1004919-0002067975-4
MERS PHONE #: 1-888-679-6377

The following information, as further defined below, is provided in accordance with Virginia law:

This Deed of Trust is given by **CLARENCE SCARBROUGH,**

as Borrower (trustor), to Tracy Bryan Horstkamp, Esquire,

as Trustee, for the benefit of Mortgage Electronic Registration Systems, Inc., as beneficiary.
THIS IS A REFINANCE OF A (DEED OF TRUST, MORTGAGE, OR OTHER SECURITY INTEREST) RECORDED IN THE CLERK'S OFFICE, CIRCUIT COURT OF PULASKI COUNTY, VIRGINIA, IN DEED BOOK 202401561, PAGE N/A, IN THE ORIGINAL PRINCIPAL AMOUNT OF $206,536.00, AND WITH THE OUTSTANDING PRINCIPAL BALANCE WHICH IS $204,475.32 WHICH HAD AN INTEREST RATE OF 6.625 % PER ANNUM.
Reference for this purpose of computing cost of recording this deed of trust is here made to section 58.1-803(e) of the Virginia code, 1950, as amended.

DEFINITIONS

Words used in multiple sections of this document are defined below and other words are defined under the caption TRANSFER OF RIGHTS IN THE PROPERTY and in Sections 3, 4, 10, 11, 12, 16, 19, 24, and 25. Certain rules regarding the usage of words used in this document are also provided in Section 17.

Parties
(A) "Borrower" is **CLARENCE SCARBROUGH**

currently residing at **119 6TH ST NW, Pulaski, VA 24301.**

Borrower is the trustor under this Security Instrument.
(B) "Lender" is **Village Capital & Investment LLC.**

Lender is **a Limited Liability Corporation,** organized and existing under the laws of **California.** Lender's address is **2460 Paseo Verde Parkway, Suite 110, Henderson, NV 89074.**
The term "Lender" includes any successors and assigns of Lender.
(C) "Trustee" is Tracy Bryan Horstkamp, Esquire.

Trustee (whether one or more persons) is a Virginia resident and/or a United States- or Virginia-organized corporation or other permissible entity. Trustee's address is 44081 Pipeline Plaza, Suite 100, Ashburn, Virginia 20147.

The term "Trustee" includes any substitute/successor Trustee.
(D) "MERS" is Mortgage Electronic Registration Systems, Inc. MERS is a separate corporation that is acting solely as a nominee for Lender and Lender's successors and assigns. **MERS is the beneficiary under this Security Instrument.** MERS is organized and existing under the laws of Delaware, and has an address and telephone number of P.O. Box 2026, Flint, MI 48501-2026, tel. (888) 679-MERS.

Documents
(E) "Note" means the promissory note dated **June 30, 2025,** and signed by each Borrower who is legally obligated for the debt under that promissory note, that is in either (i) paper form, using Borrower's written pen and ink signature, or (ii) electronic form, using Borrower's adopted Electronic Signature in accordance with the UETA or E-SIGN, as applicable. The Note evidences the legal obligation of each Borrower who signed the Note to pay Lender **TWO HUNDRED TEN THOUSAND THREE HUNDRED THIRTY THREE AND NO/100*** ********** Dollars (U.S. **$210,333.00**) plus interest. Each Borrower who signed the Note has promised to pay this debt in regular monthly payments and to pay the debt in full not later than **August 1, 2055.**
The interest rate stated in the Note is 5.990 %. If this Security Instrument is an adjustable rate mortgage loan, this initial rate is subject to change in accordance with the attached Adjustable Rate Rider.
(F) "Riders" means all Riders to this Security Instrument that are signed by Borrower. All such Riders are incorporated into and deemed to be a part of this Security Instrument. The following Riders are to be signed by Borrower [check box as applicable]:

- ☐ Adjustable Rate Rider
- ☐ Condominium Rider
- ☐ Second Home Rider
- ☐ 1-4 Family Rider
- ☐ Planned Unit Development Rider
- ☒ V.A. Rider
- ☐ Other(s) [specify]

(G) "Security Instrument" means this document, which is dated **June 30, 2025,** together with all Riders to this document.

Additional Definitions
(H) "Applicable Law" means all controlling applicable federal, state, and local statutes, regulations, ordinances, and administrative rules and orders (that have the effect of law) as well as all applicable final, non-appealable judicial opinions.
(I) "Community Association Dues, Fees, and Assessments" means all dues, fees, assessments, and other charges that are imposed on Borrower or the Property by a condominium association, homeowners association, or similar organization.

(J) "Default" means: (i) the failure to pay any Periodic Payment or any other amount secured by this Security Instrument on the date it is due; (ii) a breach of any representation, warranty, covenant, obligation, or agreement in this Security Instrument; (iii) any materially false, misleading, or inaccurate information or statement to Lender provided by Borrower or any persons or entities acting at Borrower's direction or with Borrower's knowledge or consent, or failure to provide Lender with material information in connection with the Loan, as described in Section 8; or (iv) any action or proceeding described in Section 12(e).

(K) "Electronic Fund Transfer" means any transfer of funds, other than a transaction originated by check, draft, or similar paper instrument, which is initiated through an electronic terminal, telephonic instrument, computer, or magnetic tape so as to order, instruct, or authorize a financial institution to debit or credit an account. Such term includes, but is not limited to, point-of-sale transfers, automated teller machine transactions, transfers initiated by telephone or other electronic device capable of communicating with such financial institution, wire transfers, and automated clearinghouse transfers.

(L) "Electronic Signature" means an "Electronic Signature" as defined in the UETA or E-SIGN, as applicable.

(M) "E-SIGN" means the Electronic Signatures in Global and National Commerce Act (15 U.S.C. § 7001 *et seq.*), as it may be amended from time to time, or any applicable additional or successor legislation that governs the same subject matter.

(N) "Escrow Items" means: (i) taxes and assessments and other items that can attain priority over this Security Instrument as a lien or encumbrance on the Property; (ii) leasehold payments or ground rents on the Property, if any; (iii) premiums for any and all insurance required by Lender under Section 5; (iv) Mortgage Insurance premiums, if any, or any sums payable by Borrower to Lender in lieu of the payment of Mortgage Insurance premiums in accordance with the provisions of Section 11; and (v) Community Association Dues, Fees, and Assessments if Lender requires that they be escrowed beginning at Loan closing or at any time during the Loan term.

(O) "Loan" means the debt obligation evidenced by the Note, plus interest, any prepayment charges, costs, expenses, and late charges due under the Note, and all sums due under this Security Instrument, plus interest.

(P) "Loan Servicer" means the entity that has the contractual right to receive Borrower's Periodic Payments and any other payments made by Borrower, and administers the Loan on behalf of Lender. Loan Servicer does not include a sub-servicer, which is an entity that may service the Loan on behalf of the Loan Servicer.

(Q) "Miscellaneous Proceeds" means any compensation, settlement, award of damages, or proceeds paid by any third party (other than insurance proceeds paid under the coverages described in Section 5) for: (i) damage to, or destruction of, the Property; (ii) condemnation or other taking of all or any part of the Property; (iii) conveyance in lieu of condemnation; or (iv) misrepresentations of, or omissions as to, the value and/or condition of the Property.

(R) "Mortgage Insurance" means insurance protecting Lender against the nonpayment of, or Default on, the Loan.

(S) "Partial Payment" means any payment by Borrower, other than a voluntary prepayment permitted under the Note, which is less than a full outstanding Periodic Payment.

(T) "Periodic Payment" means the regularly scheduled amount due for (i) principal and interest under the Note, plus (ii) any amounts under Section 3.

(U) "Property" means the property described below under the heading "TRANSFER OF RIGHTS IN THE PROPERTY."

(V) "Rents" means all amounts received by or due Borrower in connection with the lease, use, and/or occupancy of the Property by a party other than Borrower.

(W) "RESPA" means the Real Estate Settlement Procedures Act (12 U.S.C. § 2601 *et seq.*) and its implementing regulation, Regulation X (12 C.F.R. Part 1024), as they may be amended from time to time, or any additional or successor federal legislation or regulation that governs the same subject matter. When used in this Security Instrument, "RESPA" refers to all requirements and restrictions that would apply to a "federally related mortgage loan" even if the Loan does not qualify as a "federally related mortgage loan" under RESPA.

(X) "Successor in Interest of Borrower" means any party that has taken title to the Property, whether or not that party has assumed Borrower's obligations under the Note and/or this Security Instrument.

(Y) "UETA" means the Uniform Electronic Transactions Act, as enacted by the jurisdiction in which the Property is located, as it may be amended from time to time, or any applicable additional or successor legislation that governs the same subject matter.

TRANSFER OF RIGHTS IN THE PROPERTY

The beneficiary of this Security Instrument is MERS (solely as nominee for Lender and Lender's successors and assigns) and the successors and assigns of MERS. This Security Instrument secures to Lender

(i) the repayment of the Loan, and all renewals, extensions, and modifications of the Note, and (ii) the performance of Borrower's covenants and agreements under this Security Instrument and the Note. For this purpose, Borrower irrevocably grants and conveys to Trustee, in trust, with power of sale, the following described property located in the **County** of **Pulaski**:

SEE ATTACHED EXHIBIT A LEGAL DESCRIPTION
APN #: 072-032-0005-0009

which currently has the address of **119 6TH ST NW, Pulaski** [Street] [City/County]

Virginia **24301** ("Property Address");
[Zip Code]

TOGETHER WITH all the improvements now or subsequently erected on the property, including replacements and additions to the improvements on such property, all property rights, including, without limitation, all easements, appurtenances, royalties, mineral rights, oil or gas rights or profits, water rights, and fixtures now or subsequently a part of the property. All of the foregoing is referred to in this Security Instrument as the "Property." Borrower understands and agrees that MERS holds only legal title to the interests granted by Borrower in this Security Instrument, but, if necessary to comply with law or custom, MERS (as nominee for Lender and Lender's successors and assigns) has the right: to exercise any or all of those interests, including, but not limited to, the right to foreclose and sell the Property; and to take any action required of Lender including, but not limited to, releasing and canceling this Security Instrument.

BORROWER REPRESENTS, WARRANTS, COVENANTS, AND AGREES that: (i) Borrower lawfully owns and possesses the Property conveyed in this Security Instrument in fee simple or lawfully has the right to use and occupy the Property under a leasehold estate; (ii) Borrower has the right to grant and convey the Property or Borrower's leasehold interest in the Property; and (iii) the Property is unencumbered, and not subject to any other ownership interest in the Property, except for encumbrances and ownership interests of record. Borrower warrants generally the title to the Property and covenants and agrees to defend the title to the Property against all claims and demands, subject to any encumbrances and ownership interests of record as of Loan closing.

THIS SECURITY INSTRUMENT combines uniform covenants for national use with limited variations and non-uniform covenants that reflect specific Virginia state requirements to constitute a uniform security instrument covering real property.

UNIFORM COVENANTS. Borrower and Lender covenant and agree as follows:

1. Payment of Principal, Interest, Escrow Items, Prepayment Charges, and Late Charges. Borrower will pay each Periodic Payment when due. Borrower will also pay any prepayment charges and late charges due under the Note, and any other amounts due under this Security Instrument. Payments due under the Note and this Security Instrument must be made in U.S. currency. If any check or other instrument received by Lender as payment under the Note or this Security Instrument is returned to Lender unpaid, Lender may require that any or all subsequent payments due under the Note and this Security Instrument be made in one or more of the following forms, as selected by Lender: (a) cash; (b) money order; (c) certified check, bank check, treasurer's check, or cashier's check, provided any such check is drawn upon an institution whose deposits are insured by a U.S. federal agency, instrumentality, or entity; or (d) Electronic Fund Transfer.

Payments are deemed received by Lender when received at the location designated in the Note or at such other location as may be designated by Lender in accordance with the notice provisions in Section 16. Lender may accept or return any Partial Payments in its sole discretion pursuant to Section 2.

Any offset or claim that Borrower may have now or in the future against Lender will not relieve Borrower from making the full amount of all payments due under the Note and this Security Instrument or performing the covenants and agreements secured by this Security Instrument.

2. Acceptance and Application of Payments or Proceeds.

(a) Acceptance and Application of Partial Payments. Lender may accept and either apply or hold in suspense Partial Payments in its sole discretion in accordance with this Section 2. Lender is not obligated to accept any Partial Payments or to apply any Partial Payments at the time such payments are accepted, and also is not obligated to pay interest on such unapplied funds. Lender may hold such unapplied funds until Borrower makes payment sufficient to cover a full Periodic Payment, at which time the amount of the full Periodic Payment will be applied to the Loan. If Borrower does not make such a payment within a reasonable period of time, Lender will either apply such funds in accordance with this Section 2 or return them to Borrower. If not applied earlier, Partial Payments will be credited against the total amount due under the Loan in calculating the amount due in connection with any foreclosure proceeding, payoff request, loan modification, or reinstatement. Lender may accept any payment insufficient to bring the Loan current without waiver of any rights under this Security Instrument or prejudice to its rights to refuse such payments in the future.

(b) Order of Application of Partial Payments and Periodic Payments. Except as otherwise described in this Section 2, if Lender applies a payment, such payment will be applied to each Periodic Payment in the order in which it became due, beginning with the oldest outstanding Periodic Payment, as follows: first to interest and then to principal due under the Note, and finally to Escrow Items. If all outstanding Periodic Payments then due are paid in full, any payment amounts remaining may be applied to late charges and to any amounts then due under this Security Instrument. If all sums then due under the Note and this Security Instrument are paid in full, any remaining payment amount may be applied, in Lender's sole discretion, to a future Periodic Payment or to reduce the principal balance of the Note.

If Lender receives a payment from Borrower in the amount of one or more Periodic Payments and the amount of any late charge due for a delinquent Periodic Payment, the payment may be applied to the delinquent payment and the late charge.

When applying payments, Lender will apply such payments in accordance with Applicable Law.

(c) Voluntary Prepayments. Voluntary prepayments will be applied as described in the Note.

(d) No Change to Payment Schedule. Any application of payments, insurance proceeds, or Miscellaneous Proceeds to principal due under the Note will not extend or postpone the due date, or change the amount, of the Periodic Payments.

3. Funds for Escrow Items.

(a) Escrow Requirement; Escrow Items. Borrower must pay to Lender on the day Periodic Payments are due under the Note, until the Note is paid in full, a sum of money to provide for payment of amounts due for all Escrow Items (the "Funds"). The amount of the Funds required to be paid each month may change during the term of the Loan. Borrower must promptly furnish to Lender all notices or invoices of amounts to be paid under this Section 3.

(b) Payment of Funds; Waiver. Borrower must pay Lender the Funds for Escrow Items unless Lender waives this obligation in writing. Lender may waive this obligation for any Escrow Item at any time. In the event of such waiver, Borrower must pay directly, when and where payable, the amounts due for any Escrow Items subject to the waiver. If Lender has waived the requirement to pay Lender the Funds for any or all Escrow Items, Lender may require Borrower to provide proof of direct payment of those items within such time period as Lender may require. Borrower's obligation to make such timely payments and to provide proof of payment is deemed to be a covenant and agreement of Borrower under this Security Instrument. If Borrower is obligated to pay Escrow Items directly pursuant to a waiver, and Borrower fails to pay timely the amount due for an Escrow Item, Lender may exercise its rights under Section 9 to pay such amount and Borrower will be obligated to repay to Lender any such amount in accordance with Section 9.

Lender may withdraw the waiver as to any or all Escrow Items at any time by giving a notice in accordance with Section 16; upon such withdrawal, Borrower must pay to Lender all Funds for such Escrow Items, and in such amounts, that are then required under this Section 3.

(c) Amount of Funds; Application of Funds. Lender may, at any time, collect and hold Funds in an amount up to, but not in excess of, the maximum amount a lender can require under RESPA. Lender will estimate the amount of Funds due in accordance with Applicable Law.

The Funds will be held in an institution whose deposits are insured by a U.S. federal agency, instrumentality, or entity (including Lender, if Lender is an institution whose deposits are so insured) or in any Federal Home Loan Bank. Lender will apply the Funds to pay the Escrow Items no later than the time specified under RESPA. Lender may not charge Borrower for: (i) holding and applying the Funds; (ii) annually analyzing the escrow account; or (iii) verifying the Escrow Items, unless Lender pays Borrower interest on the Funds and Applicable Law permits Lender to make such a charge. Unless Lender and Borrower agree in writing or Applicable Law requires interest to be paid on the Funds, Lender will not

be required to pay Borrower any interest or earnings on the Funds. Lender will give to Borrower, without charge, an annual accounting of the Funds as required by RESPA.

(d) Surplus; Shortage and Deficiency of Funds. In accordance with RESPA, if there is a surplus of Funds held in escrow, Lender will account to Borrower for such surplus. If Borrower's Periodic Payment is delinquent by more than 30 days, Lender may retain the surplus in the escrow account for the payment of the Escrow Items. If there is a shortage or deficiency of Funds held in escrow, Lender will notify Borrower and Borrower will pay to Lender the amount necessary to make up the shortage or deficiency in accordance with RESPA.

Upon payment in full of all sums secured by this Security Instrument, Lender will promptly refund to Borrower any Funds held by Lender.

4. Charges; Liens. Borrower must pay (a) all taxes, assessments, charges, fines, and impositions attributable to the Property which have priority or may attain priority over this Security Instrument, (b) leasehold payments or ground rents on the Property, if any, and (c) Community Association Dues, Fees, and Assessments, if any. If any of these items are Escrow Items, Borrower will pay them in the manner provided in Section 3.

Borrower must promptly discharge any lien that has priority or may attain priority over this Security Instrument unless Borrower: (aa) agrees in writing to the payment of the obligation secured by the lien in a manner acceptable to Lender, but only so long as Borrower is performing under such agreement; (bb) contests the lien in good faith by, or defends against enforcement of the lien in, legal proceedings which Lender determines, in its sole discretion, operate to prevent the enforcement of the lien while those proceedings are pending, but only until such proceedings are concluded; or (cc) secures from the holder of the lien an agreement satisfactory to Lender that subordinates the lien to this Security Instrument (collectively, the "Required Actions"). If Lender determines that any part of the Property is subject to a lien that has priority or may attain priority over this Security Instrument and Borrower has not taken any of the Required Actions in regard to such lien, Lender may give Borrower a notice identifying the lien. Within 10 days after the date on which that notice is given, Borrower must satisfy the lien or take one or more of the Required Actions.

5. Property Insurance.

(a) Insurance Requirement; Coverages. Borrower must keep the improvements now existing or subsequently erected on the Property insured against loss by fire, hazards included within the term "extended coverage," and any other hazards including, but not limited to, earthquakes, winds, and floods, for which Lender requires insurance. Borrower must maintain the types of insurance Lender requires in the amounts (including deductible levels) and for the periods that Lender requires. What Lender requires pursuant to the preceding sentences can change during the term of the Loan, and may exceed any minimum coverage required by Applicable Law. Borrower may choose the insurance carrier providing the insurance, subject to Lender's right to disapprove Borrower's choice, which right will not be exercised unreasonably.

(b) Failure to Maintain Insurance. If Lender has a reasonable basis to believe that Borrower has failed to maintain any of the required insurance coverages described above, Lender may obtain insurance coverage, at Lender's option and at Borrower's expense. Unless required by Applicable Law, Lender is under no obligation to advance premiums for, or to seek to reinstate, any prior lapsed coverage obtained by Borrower. Lender is under no obligation to purchase any particular type or amount of coverage and may select the provider of such insurance in its sole discretion. Before purchasing such coverage, Lender will notify Borrower if required to do so under Applicable Law. Any such coverage will insure Lender, but might not protect Borrower, Borrower's equity in the Property, or the contents of the Property, against any risk, hazard, or liability and might provide greater or lesser coverage than was previously in effect, but not exceeding the coverage required under Section 5(a). Borrower acknowledges that the cost of the insurance coverage so obtained may significantly exceed the cost of insurance that Borrower could have obtained. Any amounts disbursed by Lender for costs associated with reinstating Borrower's insurance policy or with placing new insurance under this Section 5 will become additional debt of Borrower secured by this Security Instrument. These amounts will bear interest at the Note rate from the date of disbursement and will be payable, with such interest, upon notice from Lender to Borrower requesting payment.

(c) Insurance Policies. All insurance policies required by Lender and renewals of such policies: (i) will be subject to Lender's right to disapprove such policies; (ii) must include a standard mortgage clause; and (iii) must name Lender as mortgagee and/or as an additional loss payee. Lender will have the right to hold the policies and renewal certificates. If Lender requires, Borrower will promptly give to Lender proof of paid premiums and renewal notices. If Borrower obtains any form of insurance coverage, not otherwise required by Lender, for damage to, or destruction of, the Property, such policy must include a standard mortgage clause and must name Lender as mortgagee and/or as an additional loss payee.

(d) Proof of Loss; Application of Proceeds. In the event of loss, Borrower must give prompt notice to the insurance carrier and Lender. Lender may make proof of loss if not made promptly by Borrower. Any insurance proceeds, whether or not the underlying insurance was required by Lender, will be applied to

restoration or repair of the Property, if Lender deems the restoration or repair to be economically feasible and determines that Lender's security will not be lessened by such restoration or repair.

If the Property is to be repaired or restored, Lender will disburse from the insurance proceeds any initial amounts that are necessary to begin the repair or restoration, subject to any restrictions applicable to Lender. During the subsequent repair and restoration period, Lender will have the right to hold such insurance proceeds until Lender has had an opportunity to inspect such Property to ensure the work has been completed to Lender's satisfaction (which may include satisfying Lender's minimum eligibility requirements for persons repairing the Property, including, but not limited to, licensing, bond, and insurance requirements) provided that such inspection must be undertaken promptly. Lender may disburse proceeds for the repairs and restoration in a single payment or in a series of progress payments as the work is completed, depending on the size of the repair or restoration, the terms of the repair agreement, and whether Borrower is in Default on the Loan. Lender may make such disbursements directly to Borrower, to the person repairing or restoring the Property, or payable jointly to both. Lender will not be required to pay Borrower any interest or earnings on such insurance proceeds unless Lender and Borrower agree in writing or Applicable Law requires otherwise. Fees for public adjusters, or other third parties, retained by Borrower will not be paid out of the insurance proceeds and will be the sole obligation of Borrower.

If Lender deems the restoration or repair not to be economically feasible or Lender's security would be lessened by such restoration or repair, the insurance proceeds will be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower. Such insurance proceeds will be applied in the order that Partial Payments are applied in Section 2(b).

(e) Insurance Settlements; Assignment of Proceeds. If Borrower abandons the Property, Lender may file, negotiate, and settle any available insurance claim and related matters. If Borrower does not respond within 30 days to a notice from Lender that the insurance carrier has offered to settle a claim, then Lender may negotiate and settle the claim. The 30-day period will begin when the notice is given. In either event, or if Lender acquires the Property under Section 26 or otherwise, Borrower is unconditionally assigning to Lender (i) Borrower's rights to any insurance proceeds in an amount not to exceed the amounts unpaid under the Note and this Security Instrument, and (ii) any other of Borrower's rights (other than the right to any refund of unearned premiums paid by Borrower) under all insurance policies covering the Property, to the extent that such rights are applicable to the coverage of the Property. If Lender files, negotiates, or settles a claim, Borrower agrees that any insurance proceeds may be made payable directly to Lender without the need to include Borrower as an additional loss payee. Lender may use the insurance proceeds either to repair or restore the Property (as provided in Section 5(d)) or to pay amounts unpaid under the Note or this Security Instrument, whether or not then due.

6. Occupancy. Borrower must occupy, establish, and use the Property as Borrower's principal residence within 60 days after the execution of this Security Instrument and must continue to occupy the Property as Borrower's principal residence for at least one year after the date of occupancy, unless Lender otherwise agrees in writing, which consent will not be unreasonably withheld, or unless extenuating circumstances exist that are beyond Borrower's control.

7. Preservation, Maintenance, and Protection of the Property; Inspections. Borrower will not destroy, damage, or impair the Property, allow the Property to deteriorate, or commit waste on the Property. Whether or not Borrower is residing in the Property, Borrower must maintain the Property in order to prevent the Property from deteriorating or decreasing in value due to its condition. Unless Lender determines pursuant to Section 5 that repair or restoration is not economically feasible, Borrower will promptly repair the Property if damaged to avoid further deterioration or damage.

If insurance or condemnation proceeds are paid to Lender in connection with damage to, or the taking of, the Property, Borrower will be responsible for repairing or restoring the Property only if Lender has released proceeds for such purposes. Lender may disburse proceeds for the repairs and restoration in a single payment or in a series of progress payments as the work is completed, depending on the size of the repair or restoration, the terms of the repair agreement, and whether Borrower is in Default on the Loan. Lender may make such disbursements directly to Borrower, to the person repairing or restoring the Property, or payable jointly to both. If the insurance or condemnation proceeds are not sufficient to repair or restore the Property, Borrower remains obligated to complete such repair or restoration.

Lender may make reasonable entries upon and inspections of the Property. If Lender has reasonable cause, Lender may inspect the interior of the improvements on the Property. Lender will give Borrower notice at the time of or prior to such an interior inspection specifying such reasonable cause.

8. Borrower's Loan Application. Borrower will be in Default if, during the Loan application process, Borrower or any persons or entities acting at Borrower's direction or with Borrower's knowledge or consent gave materially false, misleading, or inaccurate information or statements to Lender (or failed to provide Lender with material information) in connection with the Loan, including, but not limited to, overstating Borrower's income or assets, understating or failing to provide documentation of Borrower's debt obligations and liabilities, and misrepresenting Borrower's occupancy or intended occupancy of the Property as Borrower's principal residence.

9. Protection of Lender's Interest in the Property and Rights Under this Security Instrument.

(a) Protection of Lender's Interest. If: (i) Borrower fails to perform the covenants and agreements contained in this Security Instrument; (ii) there is a legal proceeding or government order that might significantly affect Lender's interest in the Property and/or rights under this Security Instrument (such as a proceeding in bankruptcy, probate, for condemnation or forfeiture, for enforcement of a lien that has priority or may attain priority over this Security Instrument, or to enforce laws or regulations); or (iii) Lender reasonably believes that Borrower has abandoned the Property, then Lender may do and pay for whatever is reasonable or appropriate to protect Lender's interest in the Property and/or rights under this Security Instrument, including protecting and/or assessing the value of the Property, and securing and/or repairing the Property. Lender's actions may include, but are not limited to: (I) paying any sums secured by a lien that has priority or may attain priority over this Security Instrument; (II) appearing in court; and (III) paying: (A) reasonable attorneys' fees and costs; (B) property inspection and valuation fees; and (C) other fees incurred for the purpose of protecting Lender's interest in the Property and/or rights under this Security Instrument, including its secured position in a bankruptcy proceeding. Securing the Property includes, but is not limited to, exterior and interior inspections of the Property, entering the Property to make repairs, changing locks, replacing or boarding up doors and windows, draining water from pipes, eliminating building or other code violations or dangerous conditions, and having utilities turned on or off. Although Lender may take action under this Section 9, Lender is not required to do so and is not under any duty or obligation to do so. Lender will not be liable for not taking any or all actions authorized under this Section 9.

(b) Avoiding Foreclosure; Mitigating Losses. If Borrower is in Default, Lender may work with Borrower to avoid foreclosure and/or mitigate Lender's potential losses, but is not obligated to do so unless required by Applicable Law. Lender may take reasonable actions to evaluate Borrower for available alternatives to foreclosure, including, but not limited to, obtaining credit reports, title reports, title insurance, property valuations, subordination agreements, and third-party approvals. Borrower authorizes and consents to these actions. Any costs associated with such loss mitigation activities may be paid by Lender and recovered from Borrower as described below in Section 9(c), unless prohibited by Applicable Law.

(c) Additional Amounts Secured. Any amounts disbursed by Lender under this Section 9 will become additional debt of Borrower secured by this Security Instrument. These amounts may bear interest at the Note rate from the date of disbursement and will be payable, with such interest, upon notice from Lender to Borrower requesting payment.

(d) Leasehold Terms. If this Security Instrument is on a leasehold, Borrower will comply with all the provisions of the lease. Borrower will not surrender the leasehold estate and interests conveyed or terminate or cancel the ground lease. Borrower will not, without the express written consent of Lender, alter or amend the ground lease. If Borrower acquires fee title to the Property, the leasehold and the fee title will not merge unless Lender agrees to the merger in writing.

10. Assignment of Rents.

(a) Assignment of Rents. If the Property is leased to, used by, or occupied by a third party ("Tenant"), Borrower is unconditionally assigning and transferring to Lender any Rents, regardless of to whom the Rents are payable. Borrower authorizes Lender to collect the Rents, and agrees that each Tenant will pay the Rents to Lender. However, Borrower will receive the Rents until (i) Lender has given Borrower notice of Default pursuant to Section 26, and (ii) Lender has given notice to the Tenant that the Rents are to be paid to Lender. This Section 10 constitutes an absolute assignment and not an assignment for additional security only.

(b) Notice of Default. If Lender gives notice of Default to Borrower: (i) all Rents received by Borrower must be held by Borrower as trustee for the benefit of Lender only, to be applied to the sums secured by the Security Instrument; (ii) Lender will be entitled to collect and receive all of the Rents; (iii) Borrower agrees to instruct each Tenant that Tenant is to pay all Rents due and unpaid to Lender upon Lender's written demand to the Tenant; (iv) Borrower will ensure that each Tenant pays all Rents due to Lender and will take whatever action is necessary to collect such Rents if not paid to Lender; (v) unless Applicable Law provides otherwise, all Rents collected by Lender will be applied first to the costs of taking control of and managing the Property and collecting the Rents, including, but not limited to, reasonable attorneys' fees and costs, receiver's fees, premiums on receiver's bonds, repair and maintenance costs, insurance premiums, taxes, assessments, and other charges on the Property, and then to any other sums secured by this Security Instrument; (vi) Lender, or any judicially appointed receiver, will be liable to account for only those Rents actually received; and (vii) Lender will be entitled to have a receiver appointed to take possession of and manage the Property and collect the Rents and profits derived from the Property without any showing as to the inadequacy of the Property as security.

(c) Funds Paid by Lender. If the Rents are not sufficient to cover the costs of taking control of and managing the Property and of collecting the Rents, any funds paid by Lender for such purposes will become indebtedness of Borrower to Lender secured by this Security Instrument pursuant to Section 9.

(d) Limitation on Collection of Rents. Borrower may not collect any of the Rents more than one month in advance of the time when the Rents become due, except for security or similar deposits.

(e) No Other Assignment of Rents. Borrower represents, warrants, covenants, and agrees that Borrower has not signed any prior assignment of the Rents, will not make any further assignment of the Rents, and has not performed, and will not perform, any act that could prevent Lender from exercising its rights under this Security Instrument.

(f) Control and Maintenance of the Property. Unless required by Applicable Law, Lender, or a receiver appointed under Applicable Law, is not obligated to enter upon, take control of, or maintain the Property before or after giving notice of Default to Borrower. However, Lender, or a receiver appointed under Applicable Law, may do so at any time when Borrower is in Default, subject to Applicable Law.

(g) Additional Provisions. Any application of the Rents will not cure or waive any Default or invalidate any other right or remedy of Lender. This Section 10 does not relieve Borrower of Borrower's obligations under Section 6.

This Section 10 will terminate when all the sums secured by this Security Instrument are paid in full.

11. Mortgage Insurance.

(a) Payment of Premiums; Substitution of Policy; Loss Reserve; Protection of Lender. If Lender required Mortgage Insurance as a condition of making the Loan, Borrower will pay the premiums required to maintain the Mortgage Insurance in effect. If Borrower was required to make separately designated payments toward the premiums for Mortgage Insurance, and (i) the Mortgage Insurance coverage required by Lender ceases for any reason to be available from the mortgage insurer that previously provided such insurance, or (ii) Lender determines in its sole discretion that such mortgage insurer is no longer eligible to provide the Mortgage Insurance coverage required by Lender, Borrower will pay the premiums required to obtain coverage substantially equivalent to the Mortgage Insurance previously in effect, at a cost substantially equivalent to the cost to Borrower of the Mortgage Insurance previously in effect, from an alternate mortgage insurer selected by Lender.

If substantially equivalent Mortgage Insurance coverage is not available, Borrower will continue to pay to Lender the amount of the separately designated payments that were due when the insurance coverage ceased to be in effect. Lender will accept, use, and retain these payments as a non-refundable loss reserve in lieu of Mortgage Insurance. Such loss reserve will be non-refundable, even when the Loan is paid in full, and Lender will not be required to pay Borrower any interest or earnings on such loss reserve.

Lender will no longer require loss reserve payments if Mortgage Insurance coverage (in the amount and for the period that Lender requires) provided by an insurer selected by Lender again becomes available, is obtained, and Lender requires separately designated payments toward the premiums for Mortgage Insurance.

If Lender required Mortgage Insurance as a condition of making the Loan and Borrower was required to make separately designated payments toward the premiums for Mortgage Insurance, Borrower will pay the premiums required to maintain Mortgage Insurance in effect, or to provide a non-refundable loss reserve, until Lender's requirement for Mortgage Insurance ends in accordance with any written agreement between Borrower and Lender providing for such termination or until termination is required by Applicable Law. Nothing in this Section 11 affects Borrower's obligation to pay interest at the Note rate.

(b) Mortgage Insurance Agreements. Mortgage Insurance reimburses Lender for certain losses Lender may incur if Borrower does not repay the Loan as agreed. Borrower is not a party to the Mortgage Insurance policy or coverage.

Mortgage insurers evaluate their total risk on all such insurance in force from time to time, and may enter into agreements with other parties that share or modify their risk, or reduce losses. These agreements may require the mortgage insurer to make payments using any source of funds that the mortgage insurer may have available (which may include funds obtained from Mortgage Insurance premiums).

As a result of these agreements, Lender, another insurer, any reinsurer, any other entity, or any affiliate of any of the foregoing, may receive (directly or indirectly) amounts that derive from (or might be characterized as) a portion of Borrower's payments for Mortgage Insurance, in exchange for sharing or modifying the mortgage insurer's risk, or reducing losses. Any such agreements will not: (i) affect the amounts that Borrower has agreed to pay for Mortgage Insurance, or any other terms of the Loan; (ii) increase the amount Borrower will owe for Mortgage Insurance; (iii) entitle Borrower to any refund; or (iv) affect the rights Borrower has, if any, with respect to the Mortgage Insurance under the Homeowners Protection Act of 1998 (12 U.S.C. § 4901 *et seq.*), as it may be amended from time to time, or any additional or successor federal legislation or regulation that governs the same subject matter ("HPA"). These rights under the HPA may include the right to receive certain disclosures, to request and obtain cancellation of the Mortgage Insurance, to have the Mortgage Insurance terminated automatically, and/or to receive a refund of any Mortgage Insurance premiums that were unearned at the time of such cancellation or termination.

12. Assignment and Application of Miscellaneous Proceeds; Forfeiture.

(a) Assignment of Miscellaneous Proceeds. Borrower is unconditionally assigning the right to receive all Miscellaneous Proceeds to Lender and agrees that such amounts will be paid to Lender.

(b) Application of Miscellaneous Proceeds upon Damage to Property. If the Property is damaged, any Miscellaneous Proceeds will be applied to restoration or repair of the Property, if Lender deems the restoration or repair to be economically feasible and Lender's security will not be lessened by such restoration or repair. During such repair and restoration period, Lender will have the right to hold such Miscellaneous Proceeds until Lender has had an opportunity to inspect the Property to ensure the work has been completed to Lender's satisfaction (which may include satisfying Lender's minimum eligibility requirements for persons repairing the Property, including, but not limited to, licensing, bond, and insurance requirements) provided that such inspection must be undertaken promptly. Lender may pay for the repairs and restoration in a single disbursement or in a series of progress payments as the work is completed, depending on the size of the repair or restoration, the terms of the repair agreement, and whether Borrower is in Default on the Loan. Lender may make such disbursements directly to Borrower, to the person repairing or restoring the Property, or payable jointly to both. Unless Lender and Borrower agree in writing or Applicable Law requires interest to be paid on such Miscellaneous Proceeds, Lender will not be required to pay Borrower any interest or earnings on such Miscellaneous Proceeds. If Lender deems the restoration or repair not to be economically feasible or Lender's security would be lessened by such restoration or repair, the Miscellaneous Proceeds will be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower. Such Miscellaneous Proceeds will be applied in the order that Partial Payments are applied in Section 2(b).

(c) Application of Miscellaneous Proceeds upon Condemnation, Destruction, or Loss in Value of the Property. In the event of a total taking, destruction, or loss in value of the Property, all of the Miscellaneous Proceeds will be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower.

In the event of a partial taking, destruction, or loss in value of the Property (each, a "Partial Devaluation") where the fair market value of the Property immediately before the Partial Devaluation is equal to or greater than the amount of the sums secured by this Security Instrument immediately before the Partial Devaluation, a percentage of the Miscellaneous Proceeds will be applied to the sums secured by this Security Instrument unless Borrower and Lender otherwise agree in writing. The amount of the Miscellaneous Proceeds that will be so applied is determined by multiplying the total amount of the Miscellaneous Proceeds by a percentage calculated by taking (i) the total amount of the sums secured immediately before the Partial Devaluation, and dividing it by (ii) the fair market value of the Property immediately before the Partial Devaluation. Any balance of the Miscellaneous Proceeds will be paid to Borrower.

In the event of a Partial Devaluation where the fair market value of the Property immediately before the Partial Devaluation is less than the amount of the sums secured immediately before the Partial Devaluation, all of the Miscellaneous Proceeds will be applied to the sums secured by this Security Instrument, whether or not the sums are then due, unless Borrower and Lender otherwise agree in writing.

(d) Settlement of Claims. Lender is authorized to collect and apply the Miscellaneous Proceeds either to the sums secured by this Security Instrument, whether or not then due, or to restoration or repair of the Property, if Borrower (i) abandons the Property, or (ii) fails to respond to Lender within 30 days after the date Lender notifies Borrower that the Opposing Party (as defined in the next sentence) offers to settle a claim for damages. "Opposing Party" means the third party that owes Borrower the Miscellaneous Proceeds or the party against whom Borrower has a right of action in regard to the Miscellaneous Proceeds.

(e) Proceeding Affecting Lender's Interest in the Property. Borrower will be in Default if any action or proceeding begins, whether civil or criminal, that, in Lender's judgment, could result in forfeiture of the Property or other material impairment of Lender's interest in the Property or rights under this Security Instrument. Borrower can cure such a Default and, if acceleration has occurred, reinstate as provided in Section 20, by causing the action or proceeding to be dismissed with a ruling that, in Lender's judgment, precludes forfeiture of the Property or other material impairment of Lender's interest in the Property or rights under this Security Instrument. Borrower is unconditionally assigning to Lender the proceeds of any award or claim for damages that are attributable to the impairment of Lender's interest in the Property, which proceeds will be paid to Lender. All Miscellaneous Proceeds that are not applied to restoration or repair of the Property will be applied in the order that Partial Payments are applied in Section 2(b).

13. Borrower Not Released; Forbearance by Lender Not a Waiver. Borrower or any Successor in Interest of Borrower will not be released from liability under this Security Instrument if Lender extends the time for payment or modifies the amortization of the sums secured by this Security Instrument. Lender will not be required to commence proceedings against any Successor in Interest of Borrower, or to refuse to extend time for payment or otherwise modify amortization of the sums secured by this Security Instrument, by reason of any demand made by the original Borrower or any Successors in Interest of Borrower. Any forbearance by Lender in exercising any right or remedy including, without limitation, Lender's acceptance of payments from third persons, entities, or Successors in Interest of Borrower or in amounts less than the amount then due, will not be a waiver of, or preclude the exercise of, any right or remedy by Lender.

14. Joint and Several Liability; Signatories; Successors and Assigns Bound. Borrower's obligations and liability under this Security Instrument will be joint and several. However, any Borrower who signs this Security Instrument but does not sign the Note: (a) signs this Security Instrument to mortgage, grant, and convey such Borrower's interest in the Property under the terms of this Security Instrument; (b) signs this Security Instrument to waive any applicable inchoate rights such as dower and curtesy and any available homestead exemptions; (c) signs this Security Instrument to assign any Miscellaneous Proceeds, Rents, or other earnings from the Property to Lender; (d) is not personally obligated to pay the sums due under the Note or this Security Instrument; and (e) agrees that Lender and any other Borrower can agree to extend, modify, forbear, or make any accommodations with regard to the terms of the Note or this Security Instrument without such Borrower's consent and without affecting such Borrower's obligations under this Security Instrument.

Subject to the provisions of Section 19, any Successor in Interest of Borrower who assumes Borrower's obligations under this Security Instrument in writing, and is approved by Lender, will obtain all of Borrower's rights, obligations, and benefits under this Security Instrument. Borrower will not be released from Borrower's obligations and liability under this Security Instrument unless Lender agrees to such release in writing.

15. Loan Charges.

(a) Tax and Flood Determination Fees. Lender may require Borrower to pay (i) a one-time charge for a real estate tax verification and/or reporting service used by Lender in connection with this Loan, and (ii) either (A) a one-time charge for flood zone determination, certification, and tracking services, or (B) a one-time charge for flood zone determination and certification services and subsequent charges each time remappings or similar changes occur that reasonably might affect such determination or certification. Borrower will also be responsible for the payment of any fees imposed by the Federal Emergency Management Agency, or any successor agency, at any time during the Loan term, in connection with any flood zone determinations.

(b) Default Charges. If permitted under Applicable Law, Lender may charge Borrower fees for services performed in connection with Borrower's Default to protect Lender's interest in the Property and rights under this Security Instrument, including: (i) reasonable attorneys' fees and costs; (ii) property inspection, valuation, mediation, and loss mitigation fees; and (iii) other related fees.

(c) Permissibility of Fees. In regard to any other fees, the absence of express authority in this Security Instrument to charge a specific fee to Borrower should not be construed as a prohibition on the charging of such fee. Lender may not charge fees that are expressly prohibited by this Security Instrument or by Applicable Law.

(d) Savings Clause. If Applicable Law sets maximum loan charges, and that law is finally interpreted so that the interest or other loan charges collected or to be collected in connection with the Loan exceed the permitted limits, then (i) any such loan charge will be reduced by the amount necessary to reduce the charge to the permitted limit, and (ii) any sums already collected from Borrower which exceeded permitted limits will be refunded to Borrower. Lender may choose to make this refund by reducing the principal owed under the Note or by making a direct payment to Borrower. If a refund reduces principal, the reduction will be treated as a partial prepayment without any prepayment charge (whether or not a prepayment charge is provided for under the Note). To the extent permitted by Applicable Law, Borrower's acceptance of any such refund made by direct payment to Borrower will constitute a waiver of any right of action Borrower might have arising out of such overcharge.

16. Notices; Borrower's Physical Address. All notices given by Borrower or Lender in connection with this Security Instrument must be in writing.

(a) Notices to Borrower. Unless Applicable Law requires a different method, any written notice to Borrower in connection with this Security Instrument will be deemed to have been given to Borrower when (i) mailed by first class mail, or (ii) actually delivered to Borrower's Notice Address (as defined in Section 16(c) below) if sent by means other than first class mail or Electronic Communication (as defined in Section 16(b) below). Notice to any one Borrower will constitute notice to all Borrowers unless Applicable Law expressly requires otherwise. If any notice to Borrower required by this Security Instrument is also required under Applicable Law, the Applicable Law requirement will satisfy the corresponding requirement under this Security Instrument.

(b) Electronic Notice to Borrower. Unless another delivery method is required by Applicable Law, Lender may provide notice to Borrower by e-mail or other electronic communication ("Electronic Communication") if: (i) agreed to by Lender and Borrower in writing; (ii) Borrower has provided Lender with Borrower's e-mail or other electronic address ("Electronic Address"); (iii) Lender provides Borrower with the option to receive notices by first class mail or by other non-Electronic Communication instead of by Electronic Communication; and (iv) Lender otherwise complies with Applicable Law. Any notice to Borrower sent by Electronic Communication in connection with this Security Instrument will be deemed to have been given to Borrower when sent unless Lender becomes aware that such notice is not delivered. If Lender becomes aware that any notice sent by Electronic Communication is not delivered, Lender will

resend such communication to Borrower by first class mail or by other non-Electronic Communication. Borrower may withdraw the agreement to receive Electronic Communications from Lender at any time by providing written notice to Lender of Borrower's withdrawal of such agreement.

(c) Borrower's Notice Address. The address to which Lender will send Borrower notice ("Notice Address") will be the Property Address unless Borrower has designated a different address by written notice to Lender. If Lender and Borrower have agreed that notice may be given by Electronic Communication, then Borrower may designate an Electronic Address as Notice Address. Borrower will promptly notify Lender of Borrower's change of Notice Address, including any changes to Borrower's Electronic Address if designated as Notice Address. If Lender specifies a procedure for reporting Borrower's change of Notice Address, then Borrower will report a change of Notice Address only through that specified procedure.

(d) Notices to Lender. Any notice to Lender will be given by delivering it or by mailing it by first class mail to Lender's address stated in this Security Instrument unless Lender has designated another address (including an Electronic Address) by notice to Borrower. Any notice in connection with this Security Instrument will be deemed to have been given to Lender only when actually received by Lender at Lender's designated address (which may include an Electronic Address). If any notice to Lender required by this Security Instrument is also required under Applicable Law, the Applicable Law requirement will satisfy the corresponding requirement under this Security Instrument.

(e) Borrower's Physical Address. In addition to the designated Notice Address, Borrower will provide Lender with the address where Borrower physically resides, if different from the Property Address, and notify Lender whenever this address changes.

17. Governing Law; Severability; Rules of Construction. This Security Instrument is governed by federal law and the law of the State of Virginia. All rights and obligations contained in this Security Instrument are subject to any requirements and limitations of Applicable Law. If any provision of this Security Instrument or the Note conflicts with Applicable Law (i) such conflict will not affect other provisions of this Security Instrument or the Note that can be given effect without the conflicting provision, and (ii) such conflicting provision, to the extent possible, will be considered modified to comply with Applicable Law. Applicable Law might explicitly or implicitly allow the parties to agree by contract or it might be silent, but such silence should not be construed as a prohibition against agreement by contract. Any action required under this Security Instrument to be made in accordance with Applicable Law is to be made in accordance with the Applicable Law in effect at the time the action is undertaken.

As used in this Security Instrument: (a) words in the singular will mean and include the plural and vice versa; (b) the word "may" gives sole discretion without any obligation to take any action; (c) any reference to "Section" in this document refers to Sections contained in this Security Instrument unless otherwise noted; and (d) the headings and captions are inserted for convenience of reference and do not define, limit, or describe the scope or intent of this Security Instrument or any particular Section, paragraph, or provision.

18. Borrower's Copy. One Borrower will be given one copy of the Note and of this Security Instrument.

19. Transfer of the Property or a Beneficial Interest in Borrower. For purposes of this Section 19 only, "Interest in the Property" means any legal or beneficial interest in the Property, including, but not limited to, those beneficial interests transferred in a bond for deed, contract for deed, installment sales contract, or escrow agreement, the intent of which is the transfer of title by Borrower to a purchaser at a future date.

If all or any part of the Property or any Interest in the Property is sold or transferred (or if Borrower is not a natural person and a beneficial interest in Borrower is sold or transferred) without Lender's prior written consent, Lender may require immediate payment in full of all sums secured by this Security Instrument. However, Lender will not exercise this option if such exercise is prohibited by Applicable Law.

If Lender exercises this option, Lender will give Borrower notice of acceleration. The notice will provide a period of not less than 30 days from the date the notice is given in accordance with Section 16 within which Borrower must pay all sums secured by this Security Instrument. If Borrower fails to pay these sums prior to, or upon, the expiration of this period, Lender may invoke any remedies permitted by this Security Instrument without further notice or demand on Borrower and will be entitled to collect all expenses incurred in pursuing such remedies, including, but not limited to: (a) reasonable attorneys' fees and costs; (b) property inspection and valuation fees; and (c) other fees incurred to protect Lender's Interest in the Property and/or rights under this Security Instrument.

20. Borrower's Right to Reinstate the Loan after Acceleration. If Borrower meets certain conditions, Borrower will have the right to reinstate the Loan and have enforcement of this Security Instrument discontinued at any time up to the later of (a) five days before any foreclosure sale of the Property, or (b) such other period as Applicable Law might specify for the termination of Borrower's right to reinstate. This right to reinstate will not apply in the case of acceleration under Section 19.

To reinstate the Loan, Borrower must satisfy all of the following conditions: (aa) pay Lender all sums that then would be due under this Security Instrument and the Note as if no acceleration had occurred; (bb) cure any Default of any other covenants or agreements under this Security Instrument or the Note;

(cc) pay all expenses incurred in enforcing this Security Instrument or the Note, including, but not limited to: (i) reasonable attorneys' fees and costs; (ii) property inspection and valuation fees; and (iii) other fees incurred to protect Lender's interest in the Property and/or rights under this Security Instrument or the Note; and (dd) take such action as Lender may reasonably require to assure that Lender's interest in the Property and/or rights under this Security Instrument or the Note, and Borrower's obligation to pay the sums secured by this Security Instrument or the Note, will continue unchanged.

Lender may require that Borrower pay such reinstatement sums and expenses in one or more of the following forms, as selected by Lender: (aaa) cash; (bbb) money order; (ccc) certified check, bank check, treasurer's check, or cashier's check, provided any such check is drawn upon an institution whose deposits are insured by a U.S. federal agency, instrumentality, or entity; or (ddd) Electronic Fund Transfer. Upon Borrower's reinstatement of the Loan, this Security Instrument and obligations secured by this Security Instrument will remain fully effective as if no acceleration had occurred.

21. Sale of Note. The Note or a partial interest in the Note, together with this Security Instrument, may be sold or otherwise transferred one or more times. Upon such a sale or other transfer, all of Lender's rights and obligations under this Security Instrument will convey to Lender's successors and assigns.

22. Loan Servicer. Lender may take any action permitted under this Security Instrument through the Loan Servicer or another authorized representative, such as a sub-servicer. Borrower understands that the Loan Servicer or other authorized representative of Lender has the right and authority to take any such action.

The Loan Servicer may change one or more times during the term of the Note. The Loan Servicer may or may not be the holder of the Note. The Loan Servicer has the right and authority to: (a) collect Periodic Payments and any other amounts due under the Note and this Security Instrument; (b) perform any other mortgage loan servicing obligations; and (c) exercise any rights under the Note, this Security Instrument, and Applicable Law on behalf of Lender. If there is a change of the Loan Servicer, Borrower will be given written notice of the change which will state the name and address of the new Loan Servicer, the address to which payments should be made, and any other information RESPA requires in connection with a notice of transfer of servicing.

23. Notice of Grievance. Until Borrower or Lender has notified the other party (in accordance with Section 16) of an alleged breach and afforded the other party a reasonable period after the giving of such notice to take corrective action, neither Borrower nor Lender may commence, join, or be joined to any judicial action (either as an individual litigant or a member of a class) that (a) arises from the other party's actions pursuant to this Security Instrument or the Note, or (b) alleges that the other party has breached any provision of this Security Instrument or the Note. If Applicable Law provides a time period that must elapse before certain action can be taken, that time period will be deemed to be reasonable for purposes of this Section 23. The notice of Default given to Borrower pursuant to Section 26(a) and the notice of acceleration given to Borrower pursuant to Section 19 will be deemed to satisfy the notice and opportunity to take corrective action provisions of this Section 23.

24. Hazardous Substances.

(a) Definitions. As used in this Section 24: (i) "Environmental Law" means any Applicable Laws where the Property is located that relate to health, safety, or environmental protection; (ii) "Hazardous Substances" include (A) those substances defined as toxic or hazardous substances, pollutants, or wastes by Environmental Law, and (B) the following substances: gasoline, kerosene, other flammable or toxic petroleum products, toxic pesticides and herbicides, volatile solvents, materials containing asbestos or formaldehyde, corrosive materials or agents, and radioactive materials; (iii) "Environmental Cleanup" includes any response action, remedial action, or removal action, as defined in Environmental Law; and (iv) an "Environmental Condition" means a condition that can cause, contribute to, or otherwise trigger an Environmental Cleanup.

(b) Restrictions on Use of Hazardous Substances. Borrower will not cause or permit the presence, use, disposal, storage, or release of any Hazardous Substances, or threaten to release any Hazardous Substances, on or in the Property. Borrower will not do, nor allow anyone else to do, anything affecting the Property that: (i) violates Environmental Law; (ii) creates an Environmental Condition; or (iii) due to the presence, use, or release of a Hazardous Substance, creates a condition that adversely affects or could adversely affect the value of the Property. The preceding two sentences will not apply to the presence, use, or storage on the Property of small quantities of Hazardous Substances that are generally recognized to be appropriate to normal residential uses and to maintenance of the Property (including, but not limited to, hazardous substances in consumer products).

(c) Notices; Remedial Actions. Borrower will promptly give Lender written notice of: (i) any investigation, claim, demand, lawsuit, or other action by any governmental or regulatory agency or private party involving the Property and any Hazardous Substance or Environmental Law of which Borrower has actual knowledge; (ii) any Environmental Condition, including but not limited to, any spilling, leaking, discharge, release, or threat of release of any Hazardous Substance; and (iii) any condition caused by the presence, use, or release of a Hazardous Substance that adversely affects the value of the Property.

If Borrower learns, or is notified by any governmental or regulatory authority or any private party, that any removal or other remediation of any Hazardous Substance affecting the Property is necessary, Borrower will promptly take all necessary remedial actions in accordance with Environmental Law. Nothing in this Security Instrument will create any obligation on Lender for an Environmental Cleanup.

25. Electronic Note Signed with Borrower's Electronic Signature. If the Note evidencing the debt for this Loan is electronic, Borrower acknowledges and represents to Lender that Borrower: (a) expressly consented and intended to sign the electronic Note using an Electronic Signature adopted by Borrower ("Borrower's Electronic Signature") instead of signing a paper Note with Borrower's written pen and ink signature; (b) did not withdraw Borrower's express consent to sign the electronic Note using Borrower's Electronic Signature; (c) understood that by signing the electronic Note using Borrower's Electronic Signature, Borrower promised to pay the debt evidenced by the electronic Note in accordance with its terms; and (d) signed the electronic Note with Borrower's Electronic Signature with the intent and understanding that by doing so, Borrower promised to pay the debt evidenced by the electronic Note in accordance with its terms.

NON-UNIFORM COVENANTS. Borrower and Lender further covenant and agree as follows:

26. Acceleration; Remedies.

(a) Notice of Default. Lender will give a notice of Default to Borrower prior to acceleration following Borrower's Default, except that such notice of Default will not be sent when Lender exercises its right under Section 19 unless Applicable Law provides otherwise. The notice will specify, in addition to any other information required by Applicable Law: (i) the Default; (ii) the action required to cure the Default; (iii) a date, not less than 30 days (or as otherwise specified by Applicable Law) from the date the notice is given to Borrower, by which the Default must be cured; (iv) that failure to cure the Default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property; (v) Borrower's right to reinstate after acceleration; and (vi) Borrower's right to bring a court action to deny the existence of a Default or to assert any other defense of Borrower to acceleration and sale.

(b) Acceleration; Power of Sale; Expenses. If the Default is not cured on or before the date specified in the notice, Lender may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the power of sale and any other remedies permitted by Applicable Law. Lender will be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 26, including, but not limited to: (i) reasonable attorneys' fees and costs; (ii) property inspection and valuation fees; and (iii) other fees incurred to protect Lender's interest in the Property and/or rights under this Security Instrument.

(c) Notice of Sale; Sale of Property. If Lender invokes the power of sale, Lender or Trustee will give to Borrower, the owner of the Property, and all other persons, notice of sale, as required by Applicable Law. Trustee will give public notice of sale by advertising, in accordance with Applicable Law, once a week for two successive weeks in a newspaper having general circulation in the county or city in which any part of the Property is located, and by such additional or any different form of advertisement the Trustee deems advisable. Trustee may sell the Property on the eighth day after the first advertisement or any day thereafter, but not later than 30 days following the last advertisement. Trustee, without further demand on Borrower, will sell the Property at public auction to the highest bidder at the time and place and under the terms designated in the notice of sale in one or more parcels and in any order Trustee determines. Trustee may postpone sale of all or any parcel of the Property by advertising in accordance with Applicable Law. Lender or its designee may purchase the Property at any sale.

(d) Trustee's Deed; Proceeds of Sale. Trustee will deliver to the purchaser a Trustee's deed conveying the Property with special warranty of title. The recitals in the Trustee's deed will be prima facie evidence of the truth of the statements made in that deed. Trustee will apply the proceeds of the sale in the following order: (i) to discharge the expenses of executing the trust, including a reasonable commission to Trustee; (ii) to discharge all taxes, levies, and assessment, with costs and interest if these costs have priority over the lien of this Security Instrument, including the pro rata amount thereof due for the current year; (iii) to discharge in the order of their priority, if any, the remaining debts and obligations secured by this Security Instrument, and any liens of record inferior to this Security Instrument under which sale is made, with lawful interest; and (iv) the residue of the proceeds will be paid to Borrower or Borrower's assigns. Trustee will not be required to take possession of the Property prior to the sale or to deliver possession of the Property to the purchaser at the sale.

27. Release. Upon payment of all sums secured by this Security Instrument, Lender will request Trustee to release this Security Instrument and will surrender the Note evidencing the debt secured by this Security Instrument to Trustee. Upon such request, Trustee will release this Security Instrument. Borrower will pay any recordation costs associated with such release. Lender may charge Borrower a fee for releasing this Security Instrument only if the fee is paid to a third party for services rendered and is permitted under Applicable Law.

28. Substitute Trustee. Lender may, from time to time, by itself or through the Loan Servicer, remove Trustee and appoint a successor trustee to any Trustee appointed under this Security Instrument. Without conveyance of the Property, the successor trustee will succeed to all the rights, title, power, and duties conferred upon Trustee in this Security Instrument and by Applicable Law.

NOTICE: THE DEBT SECURED HEREBY IS SUBJECT TO CALL IN FULL OR THE TERMS THEREOF BEING MODIFIED IN THE EVENT OF SALE OR CONVEYANCE OF THE PROPERTY CONVEYED.

BY SIGNING BELOW, Borrower accepts and agrees to the terms and covenants contained in this Security Instrument and in any Rider signed by Borrower and recorded with it.

Clarence A Scarbrough 6/30/2025 (Seal)
CLARENCE SCARBROUGH DATE

Commonwealth of
Virginia
City/County of
Pulaski

The foregoing instrument was acknowledged before me this 30 **day of** June, 2025 **by CLARENCE SCARBROUGH.**

Notary Public's signature
Notary Registration Number: 297166
My commission expires: 03/31/2029

Notary Seal

JESSICA LEE DORAN
Notary Public
Commonwealth of Virginia
Registration No. 297166
My Commission Expires Mar 31, 2029

Lender: Village Capital & Investment LLC
NMLS ID: 3317
Loan Originator: Vienna Mackenzie Jessop
NMLS ID: 2634019

LOAN #: 72425060259
CASE #: 14-14-6-1638004
MIN: 1004919-0002067975-4

VA GUARANTEED LOAN AND ASSUMPTION POLICY RIDER

NOTICE: THIS LOAN IS NOT ASSUMABLE WITHOUT THE APPROVAL OF THE DEPARTMENT OF VETERANS AFFAIRS OR ITS AUTHORIZED AGENT.

THIS VA GUARANTEED LOAN AND ASSUMPTION POLICY RIDER is made this **30th** day of **June, 2025,** and is incorporated into and shall be deemed to amend and supplement the Mortgage, Deed of Trust or Deed to Secure Debt (herein "Security Instrument") dated of even date herewith, given by the undersigned (herein "Borrower") to secure Borrower's Note to **Village Capital & Investment LLC, a Limited Liability Corporation**

(herein "Lender")
and covering the Property described in the Security Instrument and located at
119 6TH ST NW
Pulaski, VA 24301

VA GUARANTEED LOAN COVENANT: In addition to the covenants and agreements made in the Security Instrument, Borrower and Lender further covenant and agree as follows:

If the indebtedness secured hereby be guaranteed or insured under Title 38, United States Code, such Title and Regulations issued thereunder and in effect on the date hereof shall govern the rights, duties and liabilities of Borrower and Lender. Any provisions of the Security Instrument or other instruments executed in connection with said indebtedness which are inconsistent with said Title or Regulations, including, but not limited to, the provision for payment of any sum in connection with prepayment of the secured indebtedness and the provision that the Lender may accelerate payment of the secured indebtedness pursuant to Covenant 18 of the Security Instrument, are hereby amended or negated to the extent necessary to conform such instruments to said Title or Regulations.

LATE CHARGE: At Lender's option, and as allowed by applicable state law, Borrower will pay a "late charge" not exceeding **4.000 % of any installment** when paid more than fifteen (15) days after the due date thereof to cover the extra expense involved in handling delinquent payments, but such "late charge" shall not be payable out of the proceeds of any sale made to satisfy the indebtedness secured hereby, unless such proceeds are sufficient to discharge the entire indebtedness and all proper costs and expenses secured hereby.

GUARANTY: Should the Department of Veterans Affairs fail or refuse to issue its guaranty in full amount within 60 days from the date that this loan would normally become eligible for such guaranty committed upon by the Department of Veterans Affairs under the provisions of Title 38 of the U.S. Code "Veterans Benefits," the Mortgagee may declare the indebtedness hereby secured at once due and payable and may foreclose immediately or may exercise any other rights hereunder or take any other proper action as by law provided.

ACCELERATION: This loan may be declared immediately due and payable upon transfer of the property securing such loan to any transferee, unless the acceptability of the assumption of the loan is established pursuant to 38 U.S.C. 3714.

LOAN #: 72425060259

An authorized transfer ("assumption") of the property shall also be subject to additional covenants and agreements as set forth below:

(a) ASSUMPTION FUNDING FEE: A fee equal to one-half of 1 percent (.50%) of the balance of this loan as of the date of transfer of the property shall be payable at the time of transfer to the loan holder or its authorized agent, as trustee for the Department of Veterans Affairs. If the assumer fails to pay this fee at the time of transfer, the fee shall constitute an additional debt to that already secured by this instrument, shall bear interest at the rate herein provided, and, at the option of the payee of the indebtedness hereby secured or any transferee thereof, shall be immediately due and payable. This fee is automatically waived if the assumer is exempt under the provisions of 38 U.S.C. 3729 (c).

(b) ASSUMPTION PROCESSING CHARGE: Upon application for approval to allow assumption of this loan, a processing fee may be charged by the loan holder or its authorized agent for determining the creditworthiness of the assumer and subsequently revising the holder's ownership records when an approved transfer is completed. The amount of this charge shall not exceed the maximum established by the Department of Veterans Affairs for a loan to which 38 U.S.C. 3714 applies.

(c) INDEMNITY LIABILITY ASSUMPTION: If this obligation is assumed, then the assumer hereby agrees to assume all of the obligations of the veteran under the terms of the instruments creating and securing the loan. The assumer further agrees to indemnify the Department of Veterans Affairs to the extent of any claim payment arising from the guaranty or insurance of the indebtedness created by this instrument.

IN WITNESS WHEREOF, Borrower(s) has executed this VA Guaranteed Loan and Assumption Policy Rider.

Clarence Scarbrough 6/30/2025 (Seal)

CLARENCE SCARBROUGH DATE

Exhibit A

Legal Description

ALL THAT CERTAIN LOT OR PARCEL OF LAND, TOGETHER WITH ANY IMPROVEMENTS THEREON AND APPURTENANCES THEREUNTO BELONGING, LYING AND BEING IN THE COUNTY OF PULASKI, VIRGINIA, AND MORE PARTICULARLY BOUNDED AND DESCRIBED AS FOLLOWS:

BEGINNING AT AN IRON PIPE STAKE IN THE SOUTH LINE OF SIXTH STREET, NORTHWEST, SAID STAKE BEING LOCATED 137 FEET WESTWARD FROM THE INTERSECTION OF THE SOUTH LINE OF SIXTH STREET, NORTHWEST, WITH THE WEST LINE OF JEFFERSON AVENUE, AND BEING THE NORTHWEST CORNER OF THE OSCAR LAUGHON PROPERTY; THENCE FROM SAID BEGINNING POINT RUNNING WITH THE SOUTH LINE OF SIXTH STREET, NORTHWEST, NORTH 88 DEGREES 00' WEST 84.75 FEET TO AN IRON PIPE AT THE NORTHEAST CORNER OF LOT NO. 7 (THE ADAIR LOT); THENCE WITH A LINE OF SAID LOT, SOUTH 2 DEGREES 00' WEST 150.0 FEET TO AN IRON PIPE STAKE; THENCE SOUTH 88 DEGREES 00' EAST 68.2 FEET TO AN IRON PIPE STAKE IN THE EXTENSION OF THE WEST LINE OF SAID LAUGHON PROPERTY; THENCE WITH SAID LINE, NORTH 8 DEGREES 18' EAST 150.9 FEET TO THE BEGINNING, AND BEING THE MAJOR PART OF THE NORTHERN 150 FEET OF LOT NO. 9 AND 9.75 FEET OF THE NORTHWEST CORNER OF LOT NO. 11, IN SECTION 5, AS SHOWN ON THE OFFICIAL MAP OF THE TOWN OF PULASKI, VIRGINIA.

ALSO BEING THE SAME PROPERTY PER "PHYSICAL SURVEY OF PORTIONS OF LOTS NOS. 9 AND 11, SECTION 5, AS SHOWN ON A MAP OF THE TOWN OF PULASKI, PULASKI COUNTY, VIRGINIA, FOR JOSEPH E. AND DEBORAH H. VENABLE," DATED THE 13TH DAY OF FEBRUARY, 1978, AND PREPARED BY R. LLOYD MATHEWS, REGISTERED PROFESSIONAL SURVEYOR.

Parcel ID: 072-032-0005-0009

Commonly known as: 119 6th Street NW, Pulaski, VA 24301

INSTRUMENT 202502179
RECORDED IN THE CLERK'S OFFICE OF
PULASKI COUNTY CIRCUIT COURT ON
AUGUST 1, 2025 AT 03:33 PM
SPENCER A. RYGAS, CLERK
RECORDED BY: RXS

25-26544-0

ABSTRACT OF JUDGMENT

Commonwealth of Virginia VA. CODE § 8.01-449

Case No. GV25000336-00

PULASKI GEN. DIST.- CIVIL 45 THIRD ST, NW SUITE 102, PULASKI, VA 24301

DISTRICT COURT NAME AND ADDRESS

LVNV FUNDING LLC v. SCARBROUGH, CLARENCE A

FULL NAME OF PLAINTIFF (LAST, FIRST, MIDDLE) FULL NAME OF DEFENDANT (LAST, FIRST, MIDDLE)

SUCCESSOR INTEREST TO CREDIT ONE BANK

ADDRESS

8028 RITCHIE HWY STE 300
PASADENA, MD 21122

CITY STATE ZIP

DATE OF BIRTH SSN (LAST FOUR DIGITS ONLY)

FULL NAME OF PLAINTIFF(S)

ADDRESS

CITY STATE ZIP

DATE OF BIRTH SSN (LAST FOUR DIGITS ONLY)

ADDRESS

119 6TH STREET NW
PULASKI, VA 24301

CITY STATE ZIP

DATE OF BIRTH SSN (LAST FOUR DIGITS ONLY)

FULL NAME OF DEFENDANT(S)

ADDRESS

CITY STATE ZIP

DATE OF BIRTH SSN (LAST FOUR DIGITS ONLY)

This is to certify that a judgment was rendered in this court in favor of:

[X] PLAINTIFF(S) against DEFENDANT(S)

[ ] DEFENDANT(S) against PLAINTIFF(S)

[ ] ..... v. .....

DATE OF JUDGMENT 4/22/2025	
$ 1,489.01	AMOUNT OF JUDGMENT
$	AMOUNT OF JUDGMENT NOT SUBJECT TO ACCRUAL OF INTEREST
HOMESTEAD EXEMPTION WAIVED [ ] YES [ ] NO [ ] CANNOT BE DEMANDED	
$	ALTERNATE VALUE OF SPECIFIC PROPERTY AWARDED
INTEREST RATE(S) AND BEGINNING DATE(S) 6% FROM DOJ	

COSTS	ATTORNEY'S FEES	ATTORNEY
$ 62.00	$	KLIMA PETERS & DALY

OTHER:

I certify the above to be a true abstract of a judgment rendered in this court.

6/4/2025
DATE

Dep M G
[X] CLERK [ ] JUDGE

FORM DC-465 MASTER 7/07

INCLUDED FOR PLAT

BOOK 329 PAGE 788

THIS DEED, made and entered into this 27th day of February, 1978, by and between RAY McGRADY and DOROTHY P. McGRADY, his wife, hereinafter referred to as GRANTORS, parties of the first part, and JOSEPH E. VENABLE and DEBORAH H. VENABLE, his wife, as tenants by the entirety with right of survivorship as at common law, hereinafter referred to as GRANTEES, parties of the second part.

W I T N E S S E T H

THAT FOR and in consideration of the sum of TEN DOLLARS ($10.00), cash in hand paid by the GRANTEES to the GRANTORS, and other good and valuable considerations, the receipt of all of which are hereby acknowledged, the GRANTORS do hereby bargain, sell, grant and convey, with Modern English Covenants and General Warranty of Title, unto JOSEPH E. VENABLE and DEBORAH H. VENABLE, his wife, as tenants by the entirety with right of survivorship; that is to say, that should either of the GRANTEES predecease the other, then and in that event, the entire interest of every kind and description in said property shall pass to and vest in the survivor, all that certain lot or parcel of land situate in the Town of Pulaski, County of Pulaski, Virginia, and more particularly bounded and described as follows:

> BEGINNING at an iron pipe stake in the south line of Sixth Street, Northwest, said stake being located 137 feet westward from the intersection of the south line of Sixth Street, Northwest, with the west line of Jefferson Avenue, and being the northwest corner of the Oscar Laughon property; thence from said beginning point running with the south line of Sixth Street, Northwest, North 88 deg. 00 min. West 84.75 feet to an iron pipe stake at the northeast corner of Lot No. 7 (the Adair lot); thence with a line of said lot, South 2 deg. 00 min. West 150.0 feet to an iron pipe stake; thence South 88 deg. 00 min. East 68.2 feet to an iron pipe stake in the extension of the west line of said Laughon property; thence with said line, North 8 deg. 18 min. East 150.9 feet to the BEGINNING, and being the major part of the northern 150 feet of Lot No. 9 and 9.75 feet of the northwest corner of Lot No. 11, in Section 5, as shown on the Official Map of the Town of Pulaski, Virginia.

Recorded and Returned to Joseph E. Venable 1 Oct. 28 1978 Clerk

Mail to: 119 6th St. NW Pulaski, Va.

GILMER, SADLER, GRAM, SUTHERLAND & HUTTON
ATTORNEYS AT LAW
PULASKI
BLACKSBURG - GALAX, VIRGINIA

Also being the same property per "Physical Survey of portions of Lots Nos. 9 and 11, Sec. 5, as shown on map of the Town of Pulaski, Pulaski County, Virginia, for Joseph E. and Deborah H. Venable," dated the 13th day of February, 1978, and prepared by R. Lloyd Mathews, Registered Professional Surveyor.

And being the same lot or parcel of land conveyed unto Ray McGrady and Dorothy P. McGrady, his wife, from McCoy-Mensh Insurance, Inc., a Virginia corporation, by Deed dated the 14th day of November, 1975, and of record in the Clerk's Office of the Circuit Court of Pulaski County, Virginia, in Deed Book 309, page 712.

TO HAVE AND TO HOLD said lot or parcel of land, together with all the easements and appurtenances thereunto belonging, unto the GRANTEES, as tenants by the entirety with right of survivorship as at common law, their heirs and assigns forever.

WITNESS the following signatures and seals of the said GRANTORS, the day and year first above written.

PLAT Deed
Recorded in Book
329 page 790

Ray McGrady (SEAL)
RAY McGRADY

Dorothy P. McGrady (SEAL)
DOROTHY P. McGRADY

STATE OF VIRGINIA,

COUNTY OF PULASKI, to-wit:

I, Patricia J. Garnand, a Notary Public of and for the County and State aforesaid, do hereby certify that RAY McGRADY and DOROTHY P. McGRADY, his wife, whose names are signed to the foregoing Deed bearing date on the 27th day of February, 1978, this day personally appeared before me in my County and State aforesaid and acknowledged the same.

Given under my hand this 27th day of February, 1978.

My Commission expires: April 15, 1980.

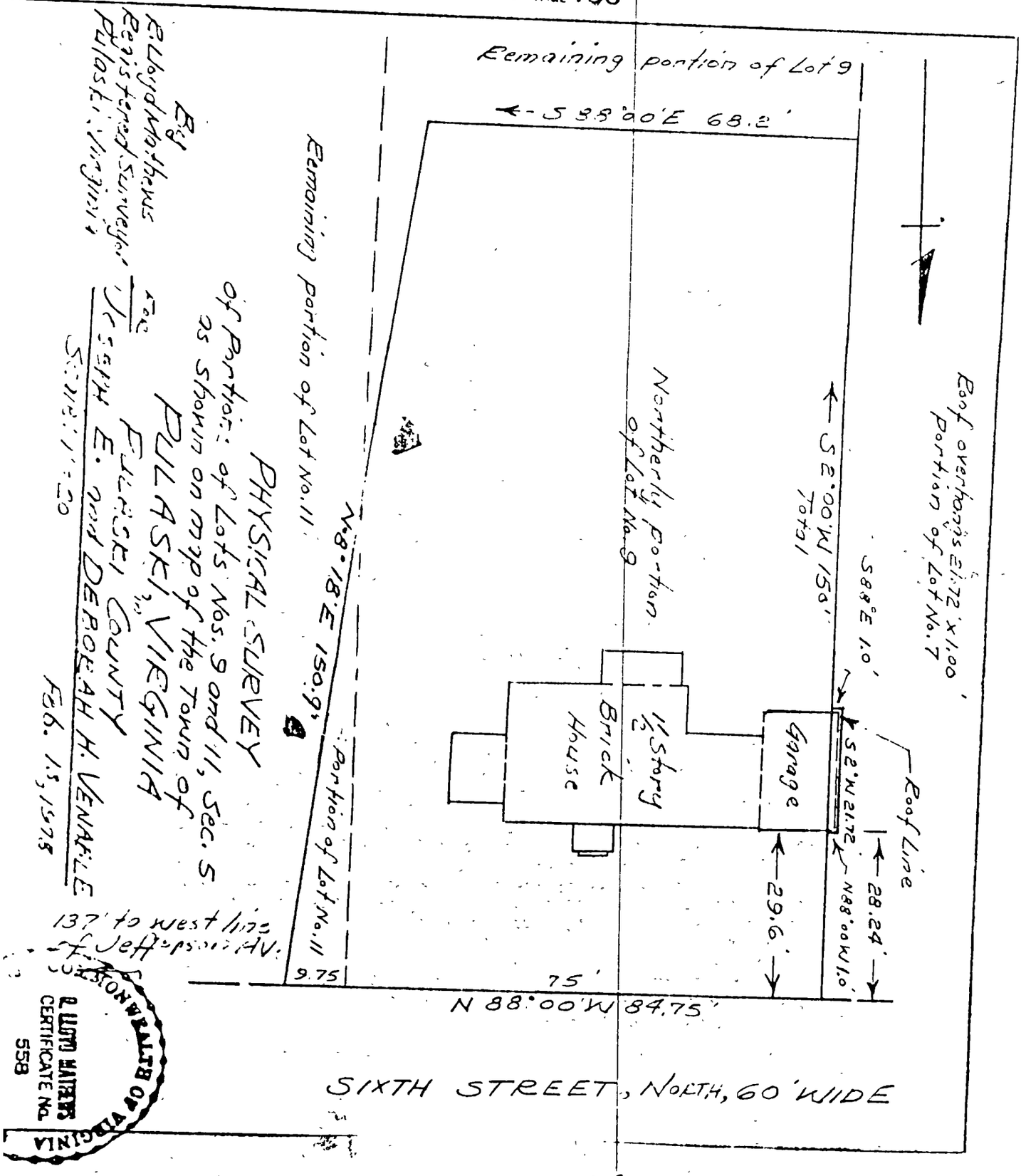
GILMER, SADLER, INGRAM, SUTHERLAND & HUTTON
ATTORNEYS AT LAW
PULASKI
BLACKSBURG - GALAX, VIRGINIA

PATRICIA J. GARNAND NOTARY PUBLIC PULASKI COUNTY

Patricia J. Garnand
NOTARY PUBLIC (SEAL)

VIRGINIA: In the Clerk's Office of the Circuit Court of Pulaski County. This instrument, with the certificate of acknowledgment thereto annexed, is admitted to record at 1:00 o'clock PM Feb. 28, 1978, after payment of $37.50 tax imposed by Section 58-54.1.

TESTE Mary Hutchinson CLERK
By Mildred A. Kellis DC



This Plat is a part of a Deed Between Ray McGrady et ux and Joseph E. Venable et ux

recorded February 28, 1978

In Deed Book 329 page 788

Clerk

Corrected

PLAN A

of the town of

PULASKI

PULASKI COUNTY, VIRGINIA.

made by the

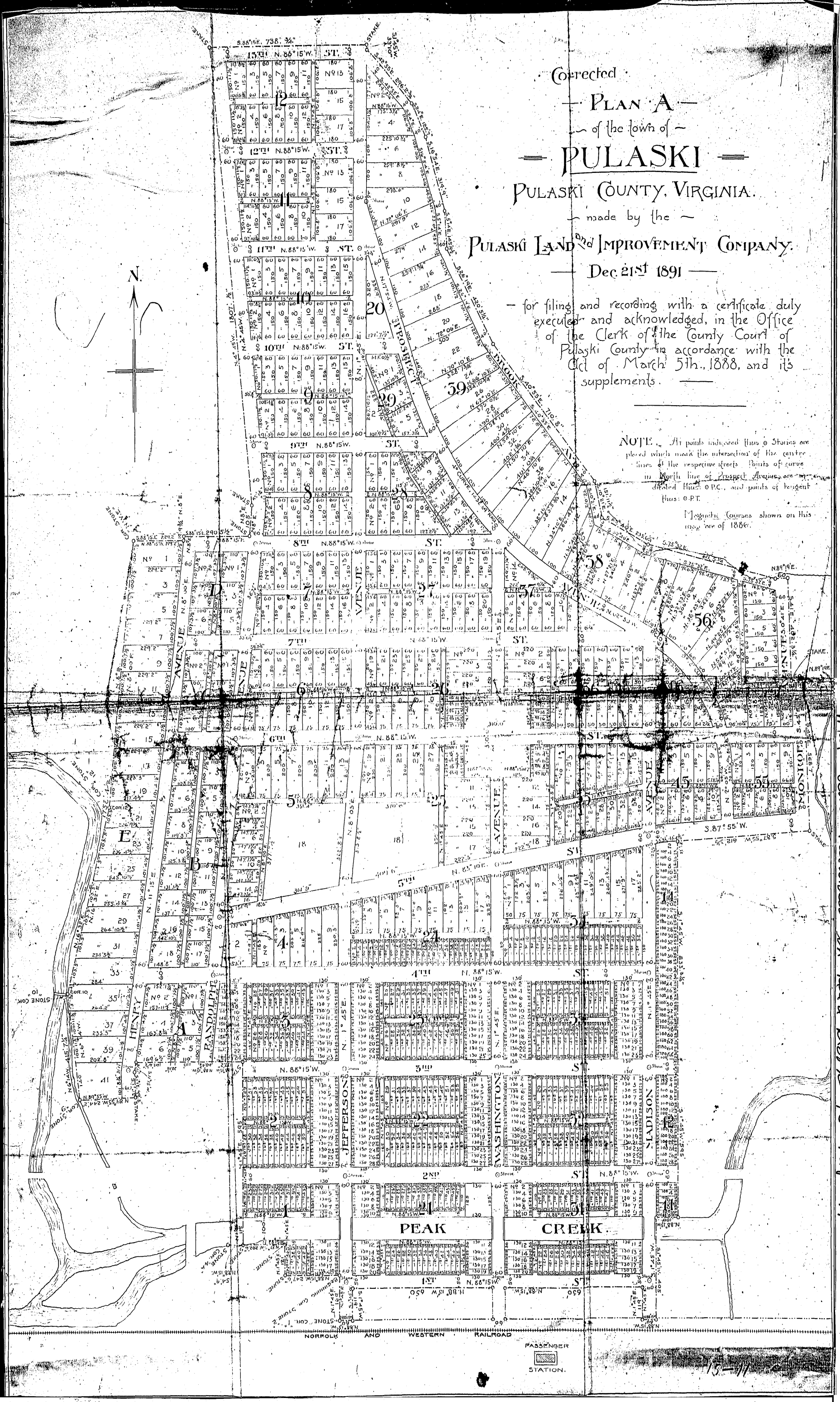
PULASKI LAND and IMPROVEMENT COMPANY.

Dec. 21st 1891

for filing and recording with a certificate duly executed and acknowledged, in the Office of the Clerk of the County Court of Pulaski County in accordance with the Act of March 5th., 1888, and it's supplements.

NOTE. All points indicated thus ⊙ Stones are placed which mark the intersection of the centre lines of the respective streets. Points of curve in North line of Prospect Avenue are marked thus: ⊙P.C., and points of tangent thus: ⊙P.T.

Magnetic Courses shown on this map are of 1886.



Map also Recorded in Deed Book 15 Page 11

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